

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3320 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____ Amendment submitted by: Mike Osburn _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3320

By: Osburn, Kendrix, Crosswhite
Hader, and West (Tammy)

FLOOR SUBSTITUTE

An Act relating to sunsets; amending 1 O.S. 2021, Section 22, as amended by Section 1, Chapter 85, O.S.L. 2023 (1 O.S. Supp. 2025, Section 22), which relates to the Oklahoma Abstractors Board; amending 3A O.S. 2021, Section 604.1, as amended by Section 1, Chapter 75, O.S.L. 2024 (3A O.S. Supp. 2025, Section 604.1), which relates to Oklahoma State Athletic Commission; amending Section 1, Chapter 345, O.S.L. 2025 (10 O.S. Supp. 2025, Section 461), which relates to the Teacher Recruitment and Retention Program; amending 10 O.S. 2021, Section 640.1, as last amended by Section 1, Chapter 74, O.S.L. 2024 (10 O.S. Supp. 2025, Section 640.1), which relates to the Oklahoma Partnership for School Readiness Board; amending 10 O.S. 2021, Section 1150.2, as last amended by Section 10, Chapter 347, O.S.L. 2024 (10 O.S. Supp. 2025, Section 1150.2), which relates to the Child Death Review Board; amending 19 O.S. 2021, Section 130.1, as amended by Section 1, Chapter 86, O.S.L. 2023 (19 O.S. Supp. 2025, Section 130.1), which relates to the Commission on County Government Personnel Education and Training; amending 27A O.S. 2021, Section 2-2-201, as amended by Section 1, Chapter 69, O.S.L. 2023 (27A O.S. Supp. 2025, Section 2-2-201), which relates to advisory councils; amending 47 O.S. 2021, Section 759, as last amended by Section 14, Chapter 330, O.S.L. 2025 (47 O.S. Supp. 2025, Section 759), which relates to the Board of Tests for Alcohol and Drug Influence; amending 52 O.S. 2021, Section 288.3, as last amended by Section 1, Chapter 13, O.S.L. 2025 (52 O.S. Supp. 2025, Section 288.3), which relates to

1 the Oklahoma Energy Resources Board; amending 59 O.S.
2 2021, Section 15.2, as last amended by Section 1,
3 Chapter 33, O.S.L. 2023 (59 O.S. Supp. 2025, Section
4 15.2), which relates to the Oklahoma Accountancy
5 Board; amending 59 O.S. 2021, Section 46.4, as last
6 amended by Section 4, Chapter 138, O.S.L. 2024 (59
7 O.S. Supp. 2025, Section 46.4), which relates to the
8 Board of Governors of the Licensed Architects,
9 Landscape Architects and Licensed Interior Designers
10 of Oklahoma; amending 59 O.S. 2021, Section 137, as
11 amended by Section 1, Chapter 25, O.S.L. 2024 (59
12 O.S. Supp. 2025, Section 137), which relates to the
13 Board of Podiatric Medical Examiners; amending 59
14 O.S. 2021, Section 161.4, as amended by Section 1,
15 Chapter 1, O.S.L. 2024 (59 O.S. Supp. 2025, Section
16 161.4), which relates to the Board of Chiropractic
17 Examiners; amending 59 O.S. 2021, Section 199.2, as
18 amended by Section 2, Chapter 317, O.S.L. 2025, (59
19 O.S. Supp. 2025, Section 199.2), which relates to the
20 State Board of Cosmetology and Barbering; amending 59
21 O.S. 2021, Section 396, as last amended by Section 1,
22 Chapter 381, O.S.L. 2025 (59 O.S. Supp. 2025, Section
23 396), which relates to the Oklahoma Funeral Board;
24 amending 59 O.S. 2021, Section 475.3, as last amended
by Section 11, Chapter 147, O.S.L. 2024 (59 O.S.
Supp. 2025, Section 475.3), which relates to the
State Board of Licensure for Professional Engineers
and Surveyors; amending 59 O.S. 2021, Section 481, as
last amended by Section 1, Chapter 14, O.S.L. 2025
(59 O.S. Supp. 2025, Section 481), which relates to
the State Board of Medical Licensure and Supervision;
amending 59 O.S. 2021, Section 582, as amended by
Section 1, Chapter 252, O.S.L. 2023 (59 O.S. Supp.
2025, Section 582), which relates to the Board of
Examiners in Optometry; amending 59 O.S. 2021,
Section 698.3, as amended by Section 1, Chapter 15,
O.S.L. 2025 (59 O.S. Supp. 2025, Section 698.3),
which relates to the State Board of Veterinary
Medical Examiners; amending 59 O.S. 2021, Section
1000.2, as last amended by Section 121, Chapter 452,
O.S.L. 2024 (59 O.S. Supp. 2025, Section 1000.2),
which relates to the Construction Industries Board;
amending 59 O.S. 2021, Section 1253, as last amended
by Section 1, Chapter 263, O.S.L. 2025 (59 O.S. Supp.
2025, Section 1253), which relates to the State Board
of Licensed Social Workers; amending 59 O.S. 2021,
Section 1354, as last amended by Section 1, Chapter

265, O.S.L. 2025 (59 O.S. Supp. 2025, Section 1354), which relates to the State Board of Examiners of Psychologists; amending 59 O.S. 2021, Section 1455, as amended by Section 1, Chapter 87, O.S.L. 2023 (59 O.S. Supp. 2025, Section 1455), which relates to the Polygraph Examiners Board; amending 59 O.S. 2021, Section 1607, as amended by Section 1, Chapter 26, O.S.L. 2025 (59 O.S. Supp. 2024, Section 1607), which relates to the Board of Examiners for Speech-Language Pathology and Audiology; amending 59 O.S. 2021, Section 1873, as last amended by Section 1, Chapter 266, O.S.L. 2025 (59 O.S. Supp. 2025, Section 1873), which relates to the Oklahoma Board of Licensed Alcohol and Drug Counselors; amending 59 O.S. 2021, Section 2053, as amended by Section 1, Chapter 76, O.S.L. 2024 (59 O.S. Supp. 2025, Section 2053), which relates to the State Board of Examiners of Perfusionists; amending 59 O.S. 2021, Section 6001, as last amended by Section 1, Chapter 89, O.S.L. 2023 (59 O.S. Supp. 2025, Section 6001), which relates to the State Board of Behavioral Health Licensure; amending 63 O.S. 2021, Section 1-1923, as amended by Section 1, Chapter 197, O.S.L. 2023 (63 O.S. Supp. 2025, Section 1-1923), which relates to the Long-Term Care Facility Advisory Council; amending 63 O.S. 2021, Section 91, as last amended by Section 1, Chapter 264, O.S.L. 2025 (63 O.S. Supp. 2025, Section 91), which relates to the State Anatomical Board; amending 67 O.S. 2021, Section 305, as last amended by Section 1, Chapter 217, O.S.L. 2025 (67 O.S. Supp. 2025, Section 305), which relates to the Archives and Records Commission; amending 70 O.S. 2021, Section 3-173, as amended by Section 1, Chapter 306, O.S.L. 2023 (70 O.S. Supp. 2025, Section 3-173), which relates to the Oklahoma Advisory Council on Indian Education; amending 70 O.S. 2021, Section 23-105, as amended by Section 1, Chapter 296, O.S.L. 2023 (70 O.S. Supp. 2025, Section 23-105), which relates to the Oklahoma Educational Television Authority; amending 73 O.S. 2021, Section 83.1, as last amended by Section 1, Chapter 16, O.S.L. 2025 (73 O.S. Supp. 2025, Section 83.1), which relates to the Capitol-Medical Center Improvement and Zoning Commission; amending 74 O.S. 2021, Section 245, as amended by Section 1, Chapter 92, O.S.L. 2023 (74 O.S. Supp. 2025, Section 245), which relates to the Oklahoma Climatological Survey; amending 74 O.S. 2021, Section

7005, as amended by Section 1, Chapter 70, O.S.L. 2023 (74 O.S. Supp. 2025, Section 7005), which relates to the Oversight Committee for State Employee Charitable Contributions; removing sunset dates; amending 74 O.S. 2021, Sections 3901, 3902, 3909, 3913, 3914, and 3917, which relate to the Oklahoma Sunset Law; making adjustments to defined term; removing reference to listing specific entities in the Oklahoma Sunset Law; permitting legislative review of statutory entities at any time for sunset purposes; permitting the Legislature to set a termination date and require adjustments for entity compliance; eliminating reference to certain re-created entity sunset limits; repealing 2 O.S. 2021, Section 18-34, which relates to the Oklahoma Beef Council; repealing 2 O.S. 2021, Section 18-181, which relates to the Sheep and Wool Utilization, Research and Market Development Commission; repealing 10 O.S. 2021, Section 1430.4, which relates to the Group Homes for Persons with Developmental or Physical Disabilities Advisory Board; repealing 11 O.S. 2021, Section 51-104, which relates to the Public Employees Relations Board; repealing 47 O.S. 2021, Section 759, which relates to the Board of Tests for Alcohol and Drug Influence; repealing 52 O.S. 2021, Section 420.22, which relates to the Oklahoma Liquefied Petroleum Gas Research, Marketing and Safety Commission; repealing 53 O.S. 2021, Section 231, which relates to the Oklahoma Music Hall of Fame Board; repealing 56 O.S. 2021, Section 162.1b, which relates to Department of Human Services Citizens Advisory Panels; repealing 57 O.S. 2021, Section 521.1, which relates to the Reentry Policy Council; repealing 57 O.S. 2021, Section 549.2, which relates to the Oklahoma Prison Industry Marketing Development Advisory Task Force; repealing 59 O.S. 2021, Section 46.4, as last amended by Section 2, Chapter 147, O.S.L. 2024 (59 O.S. Supp. 2025, Section 46.4), which relates to the Board of Governors of the Licensed Architects, Landscape Architects and Registered Commercial Interior Designers of Oklahoma; repealing 59 O.S. 2021, Section 481, as amended by Section 1, Chapter 227, O.S.L. 2024 (59 O.S. Supp. 2025, Section 481), which relates to the State Board of Medical Licensure and Supervision; repealing 59 O.S. 2021, Section 1000.2, which relates to the Construction Industries Board; repealing 62 O.S. 2021, Section

34.56, which relates to the Special Agency Account Board; repealing 63 O.S. 2021, Section 330.52, as amended by Section 4, Chapter 271, O.S.L. 2023 (63 O.S. Supp. 2025, Section 330.52), which relates to the State Board of Examiners for Long-Term Care Administrators; repealing 70 O.S. 2021, Section 6-129.1, which relates to the Minority Teacher Recruitment Advisory Committee; repealing 72 O.S. 2021, Section 241, which relates to the State Accrediting Agency; repealing 74 O.S. 2021, Section 18p-2, which relates to the Domestic Violence and Sexual Assault Advisory Council; repealing 74 O.S. 2021, Section 5060.40, which relates to the Science and Technology Council; repealing 74 O.S. 2021, Sections 3903, 3904, 3905, 3906, 3907, and 3908, which relate to listed entities within the Oklahoma Sunset Law; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 1 O.S. 2021, Section 22, as amended by Section 1, Chapter 85, O.S.L. 2023 (1 O.S. Supp. 2025, Section 22), is amended to read as follows:

Section 22. A. There is hereby re-created ~~to continue until July 1, 2026, in accordance with the Oklahoma Sunset Law,~~ the Oklahoma Abstractors Board. Beginning January 1, 2008, the Oklahoma Abstractors Board shall have the total responsibility of administering and enforcing the Oklahoma Abstractors Act.

B. The Board shall have the power and duty to prescribe, promulgate and implement rules as deemed necessary to implement all the provisions of the Oklahoma Abstractors Act.

1 C. The Board shall have the power and duty to obtain and secure
2 an office in Oklahoma City, and employ, direct, discharge, and
3 define the duties and set the salaries of employees of the Board,
4 including an executive director, as are necessary to implement the
5 provisions of the Oklahoma Abstractors Act.

6 D. The Board shall consist of nine (9) members who shall be
7 appointed by the Governor and confirmed by the Senate:

8 1. Six of the members shall be residents of this state who are
9 either a holder of a current valid Certificate of Authority or an
10 employee of a holder of a current valid Certificate of Authority for
11 not less than five (5) years in a county in the district from which
12 the member is appointed prior to appointment. One member shall be
13 appointed from each of the following districts:

14 District 1: Alfalfa, Beaver, Blaine, Cimarron, Custer, Dewey,
15 Ellis, Garfield, Grant, Harper, Kingfisher, Major, Roger Mills,
16 Texas, Woods, and Woodward Counties.

17 District 2: Beckham, Caddo, Carter, Comanche, Cotton, Garvin,
18 Grady, Greer, Harmon, Jackson, Jefferson, Kiowa, Love, McClain,
19 Murray, Stephens, Tillman, and Washita Counties.

20 District 3: Canadian, Cleveland, Logan, and Oklahoma Counties.

21 District 4: Adair, Cherokee, Craig, Delaware, Kay, Mayes,
22 Muskogee, Noble, Nowata, Okmulgee, Osage, Ottawa, Pawnee, Payne,
23 Sequoyah, and Washington Counties.

24 District 5: Creek, Lincoln, Rogers, Tulsa, and Wagoner Counties.

1 District 6: Atoka, Bryan, Choctaw, Coal, Haskell, Hughes,
2 Johnston, Latimer, LeFlore, McIntosh, Marshall, McCurtain, Okfuskee,
3 Pittsburg, Pontotoc, Pottawatomie, Pushmataha, and Seminole
4 Counties;

5 2. One member shall be a resident of this state who has been a
6 licensed real estate broker in Oklahoma for not less than five (5)
7 years;

8 3. One member shall be an attorney who is a resident of this
9 state who has been licensed to practice in Oklahoma for not less
10 than five (5) years; and

11 4. One member shall be a resident of this state who has been an
12 officer in a bank in Oklahoma for not less than five (5) years.

13 E. The Governor shall make the initial appointments to the
14 Board within ninety (90) days of July 1, 2007:

15 1. The initial appointments for the members of the Board shall
16 be as follows:

17 a. members appointed from Districts 1 and 3 shall serve
18 until July 1, 2008,

19 b. members appointed from Districts 2 and 4 shall serve
20 until July 1, 2009,

21 c. members appointed from Districts 5 and 6 shall serve
22 until July 1, 2010,

23 d. the real estate broker member shall serve until July
24 1, 2010,

1 e. the attorney member shall serve until July 1, 2009,
2 and

3 f. the bank officer member shall serve until July 1,
4 2010; and

5 2. Thereafter, all members shall serve four-year terms.

6 F. Each member shall hold office until the expiration of the
7 term of office for which appointed or until a successor has been
8 appointed and confirmed:

9 1. Vacancies on the Board due to death, resignation, or removal
10 occurring during a term shall be filled by the Governor for the
11 unexpired portion of the term in a manner as provided for regular
12 appointments to the Board;

13 2. Members filling the remainder of an unexpired term shall
14 assume office immediately upon appointment by the Governor and shall
15 serve until confirmation or denial of confirmation by the Senate;
16 and

17 3. A member may be reappointed to the Board, but shall not
18 serve more than two consecutive terms. A member that has previously
19 served two consecutive terms may be reappointed after the expiration
20 of at least one full term.

21 G. Members of the Board shall receive no salary or compensation
22 for service on the Board, but shall be reimbursed for travel
23 expenses incurred on behalf of their service on the Board pursuant
24 to the State Travel Reimbursement Act.

1 H. Members may be removed from office by the Governor:

2 1. For inefficiency, neglect of duty, or malfeasance in office
3 in the manner provided for by law for the removal of officers not
4 subject to impeachment;

5 2. For cause which shall include, but not be limited to:

6 a. the member has ceased to be qualified. A member of
7 the Board is no longer qualified to serve if that
8 member:

9 (1) is a member whose Certificate of Authority,
10 license, or permit pursuant to the laws of this
11 state has become void or has been revoked or
12 suspended, or

13 (2) is a member who has moved from this state,

14 b. the member has been convicted, pled guilty or nolo
15 contendere to a felony pursuant to the laws of the
16 United States or any jurisdiction,

17 c. the member has become medically incapacitated as
18 determined in writing by a medical doctor upon request
19 by the Board, or

20 d. the member has been absent from three meetings, or is
21 absent for more than one-half (1/2) the number of
22 minutes for which a meeting is conducted of three
23 meetings as determined by the Board during any twelve-
24 month period, unless such absence is determined to be

1 unavoidable in the opinion of a majority of the
2 remaining members;

3 3. Upon being found guilty, through due process, of
4 malfeasance, misfeasance or nonfeasance in relation to Board duties;
5 or

6 4. Upon being found mentally incompetent by a court of
7 competent jurisdiction.

8 I. Removal pursuant to the provisions of subsection H of this
9 section shall be accomplished in the following manner:

10 1. After a majority vote of the remaining members setting out
11 the dates of absences or other grounds for removal and the fact of
12 the disqualification of the member, a written notification of the
13 said vote shall be sent to the Governor; and

14 2. Upon receipt of the written notification, the Governor,
15 after a hearing conducted in accordance with the provisions of the
16 Administrative Procedures Act, may remove any member of the Board
17 for any of the reasons set out in the notice from the Board or for
18 any other reason specified in this act, provided:

19 a. removal pursuant to the provisions of this subsection
20 shall occur upon the Governor filing a written
21 statement of findings after the hearing as to the
22 reasons and basis for removal of the member with the
23 secretary of the Board, and

b. the Governor shall appoint another member in the manner provided for appointments to the Board.

SECTION 2. AMENDATORY 3A O.S. 2021, Section 604.1, as amended by Section 1, Chapter 75, O.S.L. 2024 (3A O.S. Supp. 2025, Section 604.1), is amended to read as follows:

Section 604.1. A. There is hereby re-created, ~~until July 1, 2027, in accordance with the Oklahoma Sunset Law,~~ the Oklahoma State Athletic Commission, which shall be composed of nine (9) members appointed by the Governor with the advice and consent of the Senate. The member of the Commission initially appointed pursuant to this act shall serve a term of three (3) years that shall expire on June 30, 2006. Members appointed to the Commission shall serve for terms of three (3) years. Terms of office shall expire on June 30. All vacancies and unexpired terms shall be filled in the same manner as the original appointment and within sixty (60) days from the date of the vacancy. Members may be removed by the Governor for incompetence, willful neglect of duty, corruption in office, or malfeasance in office.

B. Members appointed to the Commission shall reside in this state and shall have the following qualifications:

1. Two members shall have experience as a professional combative sports practitioner, other than as a professional wrestler or in professional combative sports promotions;

1 2. One member shall have experience as a professional wrestler
2 or in professional wrestling promotions;

3 3. One member shall have experience in sports medicine;

4 4. One member shall have experience in the cable television
5 business; and

6 5. Four members shall represent the public at large as lay
7 members.

8 C. No member of the Commission or any person related to a
9 member within the third degree by consanguinity or affinity shall
10 promote, sponsor, or have any financial interest in the promotion or
11 sponsorship of any professional combative sports event or amateur
12 mixed martial arts event while a member of the Commission.

13 D. The members of the Commission shall elect from their
14 membership a chair and vice-chair to serve for one-year terms. A
15 majority of the members shall constitute a quorum for the purpose of
16 conducting the business of the Commission. The Commission shall
17 meet at least quarterly, and special meetings may be called by the
18 chair.

19 E. The Commission shall comply with the provisions of the
20 Oklahoma Open Meeting Act, the Oklahoma Open Records Act, and the
21 Administrative Procedures Act.

22 F. All members of the Commission and such employees as
23 determined by the Commission shall be bonded as required by Sections
24 85.58Q through 85.58V of Title 74 of the Oklahoma Statutes.

1 G. Members of the Commission shall serve without compensation
2 but shall be reimbursed for expenses incurred in the performance of
3 their duties as provided in the State Travel Reimbursement Act.

4 SECTION 3. AMENDATORY Section 1, Chapter 345, O.S.L.
5 2025 (10 O.S. Supp. 2025, Section 461), is amended to read as
6 follows:

7 Section 461. A. 1. There is hereby created,~~until November 1,~~
8 ~~2028, in accordance with the Oklahoma Sunset Law,~~ the Teacher
9 Recruitment and Retention Program to be administered by Oklahoma
10 Partnership for School Readiness under the direction of the
11 Department of Human Services.

12 2. The Department of Human Services shall promulgate rules as
13 necessary to implement and enforce the provisions of this section,
14 including verifying income eligibility, employment status, and
15 administering subsidy benefits accordingly.

16 B. The Teacher Recruitment and Retention Program, administered
17 through Oklahoma Partnership for School Readiness, shall ensure
18 that:

19 1. A child care employee working at a child care facility
20 licensed pursuant to the Oklahoma Child Care Facilities Licensing
21 Act shall be eligible for the Teacher Recruitment and Retention
22 Program, provided that:
23
24

- a. total annual gross household income does not exceed One Hundred Twenty Thousand Dollars (\$120,000.00) for a two-parent household,
- b. total annual gross household income does not exceed Sixty Thousand Dollars (\$60,000.00) for a single-parent household, or
- c. children must attend a program participating in the Department of Human Services' Child Care Subsidy Program;

2. As used in this section, "child care employee" shall mean any individual who is employed for a minimum of twenty (20) hours per week, averaged monthly, who provides direct care, supervision or educational services to children or who performs duties on-site that support the daily operation of the facility participating in the Child Care Subsidy Program and which is licensed pursuant to the Oklahoma Child Care Facilities Licensing Act;

3. An employee who qualifies under the household income limitations in paragraph 1 of this subsection:

- a. shall have household income exempted from consideration solely for purposes of calculating cost-sharing or co-payment responsibilities,
- b. shall have co-payments waived if eligible under the Department's Child Care Subsidy Program, and

1 c. shall be eligible to participate in the Teacher
2 Recruitment and Retention Program, even if his or her
3 income exceeds the Child Care Subsidy Program
4 requirements;

5 4. When an employee who is employed by a licensed child care
6 facility leaves employment of the licensed provider, the provider
7 shall provide written notice within thirty (30) days to the
8 Department of Human Services that the employee is no longer
9 employed; and

10 5. Other than the income exemption pursuant to paragraph 1 of
11 this subsection and the reporting requirements established pursuant
12 to this subsection, all other conditions of eligibility for the
13 Child Care Subsidy Program located in Oklahoma Administrative Code
14 (OAC) 340:40-7-1 shall be followed.

15 C. Subsection B of this section shall not apply to employees
16 who are employed by a child care facility licensed pursuant to the
17 Oklahoma Child Care Facilities Licensing Act and who are eligible
18 for the Child Care Subsidy Program without household income being
19 exempted.

20 D. The Department of Human Services shall waive co-payments for
21 employees who are employed by a licensed child care facility and who
22 qualify under income eligibility requirements of the Child Care
23 Subsidy Program.

1 SECTION 4. AMENDATORY 10 O.S. 2021, Section 640.1, as
2 last amended by Section 1, Chapter 74, O.S.L. 2024 (10 O.S. Supp.
3 2025, Section 640.1), is amended to read as follows:

4 Section 640.1. A. There is hereby re-created ~~until July 1,~~
5 ~~2029, in accordance with the Oklahoma Sunset Law,~~ the Oklahoma
6 Partnership for School Readiness Board. The Board shall promote
7 school readiness supporting community-based efforts to increase the
8 number of children who are ready to succeed by the time they enter
9 school. The Board shall additionally serve as the state's Early
10 Childhood Advisory Council and fulfill the responsibilities
11 described in the Head Start Act of 2007 (PL 110-134, Section 642B).
12 The Board shall consist of representatives from the private and
13 public sectors as follows:

14 1. Fifteen private sector representatives appointed by the
15 Governor to include:

16 a. two parents of children eight (8) years of age or
17 younger, and

18 b. one representative of licensed child care providers;

19 2. One representative of the licensed child care industry
20 appointed by the Governor;

21 3. One representative of a state association of federally
22 funded early childhood programs appointed by the Governor; and
23
24

1 4. To ensure that existing resources are being utilized
2 effectively, fifteen public sector representatives or their
3 designees as follows:

- 4 a. State Superintendent of Public Instruction,
- 5 b. State Commissioner of Health,
- 6 c. Commissioner of the Department of Mental Health and
7 Substance Abuse Services,
- 8 d. Director of the Oklahoma Department of Commerce,
- 9 e. Director of the Oklahoma Department of Libraries,
- 10 f. Director of the Department of Human Services,
- 11 g. Administrator of the Oklahoma Health Care Authority,
- 12 h. Director of the Oklahoma Commission on Children and
13 Youth,
- 14 i. Director of the State Department of Rehabilitation
15 Services,
- 16 j. Executive Director of the Oklahoma Educational
17 Television Authority,
- 18 k. Director of the Oklahoma Department of Career and
19 Technology Education,
- 20 l. Chancellor of the Oklahoma State Regents for Higher
21 Education,
- 22 m. Cabinet Secretary with responsibility for education
23 agencies,

- 1 n. Dean of the College of Education and Human Sciences,
2 Oklahoma State University, and
3 o. State Director of Head Start Collaboration.

4 B. Members appointed by the Governor shall serve terms of four
5 (4) years; provided, of those members initially appointed to the
6 Board, eight members shall be appointed for two-year terms,
7 beginning September 1, 2003, and seven members shall be appointed
8 for four-year terms, beginning September 1, 2003, as designated by
9 the Governor. The member appointed pursuant to paragraph 2 of
10 subsection A of this section shall be appointed for an initial term
11 to end on August 31, 2007. The member appointed pursuant to
12 paragraph 3 of subsection A of this section shall be appointed for
13 an initial term to end on August 31, 2009. Appointed members shall
14 continue in office until a successor is appointed by the Governor.
15 The Governor shall fill all vacancies in the same manner as the
16 original appointment was made.

17 C. The Director of the Department of Human Services shall
18 convene an organizational meeting of the Oklahoma Partnership for
19 School Readiness Board prior to November 1, 2003, at which time
20 members of the Board shall elect a chair, a vice chair, and other
21 officers as needed. A majority of the members of the Board shall
22 constitute a quorum for the transaction of business.

1 D. Members of the Board shall receive no compensation for
2 serving on the Board but shall receive travel reimbursement as
3 follows:

4 1. State agency officers and employees who are members of the
5 Board shall be reimbursed for travel expenses incurred in the
6 performance of their duties by their respective agencies in
7 accordance with the State Travel Reimbursement Act; and

8 2. Remaining members shall be reimbursed by the Board from any
9 funds received by the Board for travel expenses incurred in the
10 performance of their duties in accordance with the State Travel
11 Reimbursement Act.

12 E. Members of the Board shall be exempt from the dual-office-
13 holding provisions of Section 6 of Title 51 of the Oklahoma
14 Statutes.

15 SECTION 5. AMENDATORY 10 O.S. 2021, Section 1150.2, as
16 last amended by Section 10, Chapter 347, O.S.L. 2024 (10 O.S. Supp.
17 2025, Section 1150.2), is amended to read as follows:

18 Section 1150.2. A. There is hereby re-created ~~until July 1,~~
19 ~~2026, in accordance with the Oklahoma Sunset Law,~~ the Child Death
20 Review Board within the Oklahoma Commission on Children and Youth.
21 The Board shall have the power and duty to:

22 1. Conduct case reviews of deaths and near deaths of children
23 in this state;

1 2. Develop accurate statistical information and identification
2 of deaths of children due to abuse and neglect;

3 3. Improve the ability to provide protective services to the
4 surviving siblings of a child or children who die of abuse or
5 neglect and who may be living in a dangerous environment;

6 4. Improve policies, procedures and practices within the
7 agencies that serve children including the child protection system;

8 5. Enter into agreements with regional teams established by the
9 Board to carry out such duties and responsibilities as the Board
10 shall designate including assigned cases in the geographical area
11 for that regional team. The Commission, with the advice of the
12 Board, shall promulgate rules necessary for the implementation of
13 the provisions of this paragraph; and

14 6. Enter into agreements with other state, local, or private
15 entities as necessary to carry out the duties of the Board
16 including, but not limited to, conducting joint reviews with the
17 Domestic Violence Fatality Review Board on domestic violence cases
18 involving child death or child near-death incidents.

19 B. In carrying out its duties and responsibilities the Board
20 shall:

21 1. Establish criteria for cases involving the death or near
22 death of a child subject to specific, in-depth review by the Board.
23 As used in this section, the term "near death" means a child is in
24

1 serious or critical condition, as certified by a physician, as a
2 result of abuse or neglect;

3 2. Conduct a specific case review of those cases where the
4 cause of death or near death is or may be related to abuse or
5 neglect of a child;

6 3. Establish and maintain statistical information related to
7 the deaths and near deaths of children including, but not limited
8 to, demographic and medical diagnostic information;

9 4. Establish procedures for obtaining initial information
10 regarding near deaths of children from the Department of Human
11 Services and law enforcement agencies;

12 5. Review the policies and procedures of the child protection
13 system and make specific recommendations to the entities comprising
14 the system as to actions necessary for improvement;

15 6. Review the extent to which the state child protection system
16 is coordinated with foster care and adoption programs and evaluate
17 whether the state is efficiently discharging its child protection
18 responsibilities under the federal Child Abuse Prevention and
19 Treatment Act State Plan;

20 7. As necessary and appropriate, for the protection of the
21 siblings of a child who dies and whose siblings are deemed to be
22 living in a dangerous environment, refer specific cases to the
23 Department of Human Services or the appropriate district attorney
24 for further investigation;

1 8. Request and obtain a copy of all records and reports
2 pertaining to a child whose case is under review including, but not
3 limited to:

- 4 a. the report of the medical examiner,
- 5 b. hospital records,
- 6 c. school records,
- 7 d. court records,
- 8 e. prosecutorial records,
- 9 f. local, state, and federal law enforcement records
10 including, but not limited to, the Oklahoma State
11 Bureau of Investigation (OSBI),
- 12 g. fire department records,
- 13 h. State Department of Health records including birth
14 certificate records,
- 15 i. medical and dental records,
- 16 j. Department of Mental Health and Substance Abuse
17 Services and other mental health records,
- 18 k. emergency medical service records,
- 19 l. files of the Department of Human Services, and
- 20 m. records in the possession of the Domestic Violence
21 Fatality Review Board when conducting a joint review
22 pursuant to paragraph 6 of subsection A of this
23 section.

1 Confidential information provided to the Board shall be
2 maintained in a confidential manner as required by state and federal
3 law. Any person damaged by disclosure of such information by the
4 Board, its regional teams or their members, not authorized by law,
5 may maintain an action for damages, costs and attorney fees;

6 9. Maintain all confidential information, documents and records
7 in possession of the Board as confidential and not subject to
8 subpoena or discovery in any civil or criminal proceedings;
9 provided, however, information, documents and records otherwise
10 available from other sources shall not be exempt from subpoena or
11 discovery through those sources solely because such information,
12 documents and records were presented to or reviewed by the Board;

13 10. Conduct reviews of specific cases of deaths and near deaths
14 of children and request the preparation of additional information
15 and reports as determined to be necessary by the Board including,
16 but not limited to, clinical summaries from treating physicians,
17 chronologies of contact, and second-opinion autopsies;

18 11. Report, if recommended by a majority vote of the Board, to
19 the President Pro Tempore of the Senate and the Speaker of the House
20 of Representatives any gross neglect of duty by any state officer or
21 state employee, or any problem within the child protective services
22 system discovered by the Board while performing its duties;

23 12. Recommend, when appropriate, amendment of the cause or
24 manner of death listed on the death certificate; and

1 13. Subject to the approval of the Commission, exercise all
2 incidental powers necessary and proper for the implementation and
3 administration of the Child Death Review Board Act.

4 C. The review and discussion of individual cases of death or
5 near death of a child shall be conducted in executive session and in
6 compliance with the confidentiality requirements of Section 1-6-102
7 of Title 10A of the Oklahoma Statutes. All other business shall be
8 conducted in accordance with the provisions of the Oklahoma Open
9 Meeting Act. All discussions of individual cases and any writings
10 produced by or created for the Board and recommended by the Board,
11 as the result of a review of an individual case of the death or near
12 death of a child, shall be privileged and shall not be admissible in
13 evidence in any proceeding. The Board shall periodically conduct
14 meetings to discuss organization and business matters and any
15 actions or recommendations aimed at improvement of the child
16 protection system which shall be subject to the Oklahoma Open
17 Meeting Act. Part of any meeting of the Board may be specifically
18 designated as a business meeting of the Board subject to the
19 Oklahoma Open Meeting Act.

20 D. 1. The Board shall submit an annual statistical report on
21 the incidence and causes of death and near death of children in this
22 state for which the Board has completed its review during the past
23 calendar year, including its recommendations, to the Oklahoma
24 Commission on Children and Youth on or before May 1 of each year.

1 The Board shall also prepare and make available to the public, on an
2 annual basis, a report containing a summary of the activities of the
3 Board relating to the review of deaths and near deaths of children,
4 the extent to which the state child protection system is coordinated
5 with foster care and adoption programs, and an evaluation of whether
6 the state is efficiently discharging its child protection
7 responsibilities. The report shall be completed no later than
8 December 31 of each year.

9 2. The Commission shall review the report of the Board and, as
10 appropriate, incorporate the findings and recommendations into the
11 State Plan for Services to Children and Youth.

12 SECTION 6. AMENDATORY 19 O.S. 2021, Section 130.1, as
13 amended by Section 1, Chapter 86, O.S.L. 2023 (19 O.S. Supp. 2025,
14 Section 130.1), is amended to read as follows:

15 Section 130.1. There is hereby re-created,~~to continue until~~
16 ~~July 1, 2026, in accordance with the provisions of the Oklahoma~~
17 ~~Sunset Law,~~ the Commission on County Government Personnel Education
18 and Training, hereinafter called the "Commission". The Commission
19 shall be composed of the following five (5) members: The President
20 of Oklahoma State University or designee; the State Auditor and
21 Inspector or designee; the Director of the Department of
22 Transportation or designee; the Chairman of the Oklahoma Tax
23 Commission or designee; and the President of the Oklahoma County
24 Officers Association or designee.

SECTION 7. AMENDATORY 27A O.S. 2021, Section 2-2-201, as amended by Section 1, Chapter 69, O.S.L. 2023 (27A O.S. Supp. 2025, Section 2-2-201), is amended to read as follows:

Section 2-2-201. A. There are hereby re-created ~~until July 1, 2026, pursuant to the provisions of the Oklahoma Sunset Law:~~

1. The Water Quality Management Advisory Council;
2. The Hazardous Waste Management Advisory Council;
3. The Solid Waste Management Advisory Council; and
4. The Radiation Management Advisory Council.

B. 1. Except as provided for in paragraph 2 of this subsection, each Council created pursuant to subsection A of this section shall consist of nine (9) members. Three members shall be appointed by the Governor, three members shall be appointed by the Speaker of the House of Representatives and three members shall be appointed by the President Pro Tempore of the Senate. Appointments shall be for three-year terms. Members of the Advisory Councils shall serve at the pleasure of and may be removed from office by the appointing authority. Members shall continue to serve until their successors are appointed. Any vacancy shall be filled in the same manner as the original appointments. Five members shall constitute a quorum.

2. a. The Solid Waste Management Advisory Council shall consist of ten (10) members. Four members shall be appointed by the Governor, three members shall be

1 appointed by the Speaker of the House of
2 Representatives and three members shall be appointed
3 by the President Pro Tempore of the Senate.

4 Appointments shall be for three-year terms. Members
5 of the Solid Waste Management Advisory Council shall
6 serve at the pleasure of and may be removed from
7 office by the appointing authority. Members shall
8 continue to serve until their successors are
9 appointed. Any vacancy shall be filled in the same
10 manner as the original appointments. Six members
11 shall constitute a quorum.

12 b. The Water Quality Management Advisory Council shall
13 consist of twelve (12) members. Four members shall be
14 appointed by the Governor, four members shall be
15 appointed by the President Pro Tempore of the Senate,
16 and four members shall be appointed by the Speaker of
17 the House of Representatives. Appointments shall be
18 for three-year terms. Members shall serve at the
19 pleasure of and may be removed by the appointing
20 authority. Members may be eligible for reappointment
21 and shall continue to serve until their successors are
22 appointed. Vacancies shall be filled in the same
23 manner as their original appointments. Seven members
24 shall constitute a quorum.

1 3. Each Council shall elect a chair and a vice-chair from among
2 its members. Each Council shall meet as required for rule
3 development, review and recommendation and for such other purposes
4 specified by law. Special meetings may be called by the chair or by
5 the concurrence of any three members.

6 C. 1. All members of the Water Quality Management Advisory
7 Council shall be knowledgeable of water quality and of the
8 environment. The Council shall be composed as follows:

9 a. the Governor shall appoint four members as follows:

- 10 (1) one member representing the field of engineering,
11 (2) one member representing a statewide nonprofit
12 environmental organization,
13 (3) one member representing the general public, and
14 (4) one member representing a commercial or publicly
15 owned laboratory accredited by the Department for
16 both the Drinking Water and the General
17 Environmental Laboratory classifications of
18 accreditation,

19 b. the President Pro Tempore of the Senate shall appoint
20 four members as follows:

- 21 (1) one member representing an industry located in
22 this state,
23 (2) one member representing an oil-field-related
24 industry,

- (3) one member representing the field of geology, and
- (4) one member who holds a certificate under the Waterworks and Wastewater Works Operator Certification Act and who is the operator of a municipal waterworks or wastewater works facility, and

c. the Speaker of the House of Representatives shall appoint four members as follows:

- (1) one member representing a political subdivision of the state who shall be a member of the local governmental body of a city or town,
- (2) one member representing a rural water district organized pursuant to the laws of this state,
- (3) one member representing the field of agriculture, and
- (4) one member who holds a certificate under the Waterworks and Wastewater Works Operator Certification Act and who is the operator of a waterworks or wastewater works for a rural water or sewer district organized pursuant to law.

2. The jurisdictional areas of the Water Quality Management Advisory Council shall include Article VI of this chapter, Article IV of this chapter, waterworks and wastewater activities, water

1 quality and protection and related activities and such other areas
2 as designated by the Board.

3 D. 1. All members of the Hazardous Waste Management Advisory
4 Council shall be knowledgeable of hazardous waste and of the
5 environment. The Council shall be composed as follows:

6 a. the Governor shall appoint three members as follows:

7 (1) one member representing an industry located in
8 this state,

9 (2) one member representing a statewide nonprofit
10 environmental organization, and

11 (3) one member representing a political subdivision
12 of the state who shall be a member of the local
13 governing body of a city or town,

14 b. the President Pro Tempore of the Senate shall appoint
15 three members as follows:

16 (1) one member representing a political subdivision
17 of the state who shall be a member of the local
18 governmental body of a city or town,

19 (2) one member representing the general public, and

20 (3) one member representing industry generating
21 hazardous waste, and

22 c. the Speaker of the House of Representatives shall
23 appoint three members as follows:

24 (1) one member representing the field of engineering,

1 (2) one member representing the hazardous waste
2 industry, and

3 (3) one member representing the field of geology.

4 2. The jurisdictional areas of the Hazardous Waste Management
5 Advisory Council shall include Article VII of this chapter, the
6 Oklahoma Hazardous Waste Reduction Program, and such other areas as
7 designated by the Board.

8 E. 1. All members of the Solid Waste Management Advisory
9 Council shall be knowledgeable of solid waste and of the
10 environment. The Council shall be composed as follows:

11 a. the Governor shall appoint four members as follows:

12 (1) one member representing a statewide nonprofit
13 environmental organization,

14 (2) one member shall be a county commissioner,

15 (3) one member representing the general public, and

16 (4) one member representing the solid waste
17 incineration, waste-to-energy industry in this
18 state,

19 b. the President Pro Tempore of the Senate shall appoint
20 three members as follows:

21 (1) one member representing an industry located in
22 this state generating solid waste,
23
24

- 1 (2) one member representing a political subdivision
2 of this state who shall be a member of the local
3 governmental body of a city or town, and
4 (3) one member representing the field of geology, and
5 c. the Speaker of the House of Representatives shall
6 appoint three members as follows:
7 (1) one member representing the solid waste disposal
8 industry in this state,
9 (2) one member representing the field of engineering,
10 and
11 (3) one member representing the transportation
12 industry.

13 2. The jurisdictional areas of the Solid Waste Management
14 Advisory Council shall include Article X of this chapter, the
15 Oklahoma Used Tire Recycling Act and such other areas as designated
16 by the Board.

17 F. 1. All members of the Radiation Management Advisory Council
18 shall be knowledgeable of radiation hazards and radiation
19 protection. The Council shall be composed as follows:

- 20 a. the Governor shall appoint three members as follows:
21 (1) one member representing an industry located in
22 this state which uses sources of radiation in its
23 manufacturing or processing business,
24

1 (2) one member representing a statewide nonprofit
2 environmental organization, and

3 (3) one member representing the engineering
4 profession who shall be a professional engineer
5 employed and experienced in matters of radiation
6 management and protection,

7 b. the President Pro Tempore of the Senate shall appoint
8 three members as follows:

9 (1) one member representing the faculty of an
10 institution of higher learning of university
11 status and shall be experienced in matters of
12 scientific knowledge and competent in matters of
13 radiation management and protection,

14 (2) one member representing the general public, and

15 (3) one member representing the field of industrial
16 radiography, and

17 c. the Speaker of the House of Representatives shall
18 appoint three members as follows:

19 (1) one member representing the transportation
20 industry,

21 (2) one member representing the petroleum industry
22 who is trained and experienced in radiation
23 management and protection, and
24

1 (3) one member representing a medical institution
2 within this state who shall be experienced in
3 matters of radiation management and protection.

4 2. The jurisdictional areas of the Radiation Management
5 Advisory Council shall include Article IX of this chapter and such
6 other areas as designated by the Board.

7 G. 1. The Air Quality Council shall remain in effect as the
8 Air Quality Advisory Council and carry on the powers and duties
9 assigned to it by law. Future appointments to the Council shall be
10 made according to the provisions of this section.

11 2. The Council shall consist of nine (9) members who shall be
12 residents of this state and appointed by the Governor with the
13 advice and consent of the Senate.

14 3. Members of the Council shall have the qualifications as
15 follows:

- 16 a. one member shall be selected from the engineering
17 profession, and, as such, shall be a professional
18 engineer and experienced in matters of air pollution
19 equipment and control, who shall not be an employee of
20 any unit of government,
- 21 b. one member shall be selected from industry in general,
22 and, as such, shall be employed as a manufacturing
23 executive carrying on a manufacturing business within
24 this state,

- 1 c. one member shall be selected from a faculty of an
2 institution of higher learning of university status
3 and shall be experienced in matters of scientific
4 knowledge and competent in matters of air pollution
5 control and evaluation,
- 6 d. one member shall be selected from the transportation
7 industry,
- 8 e. one member shall be selected from the petroleum
9 industry, and, as such, shall be employed by a
10 petroleum company carrying on a petroleum refining
11 business within the state, and, as such, shall be
12 trained and experienced in matters of scientific
13 knowledge of causes as well as effects of air
14 pollution,
- 15 f. one member shall be selected from agriculture, and, as
16 such, shall be engaged in or employed by a basic
17 agricultural business or the processing of
18 agricultural products,
- 19 g. one member shall be selected from the political
20 subdivisions of the state, and, as such, shall be a
21 member of the local government body of a city or town,
- 22 h. one member, whose first term shall expire on June 15,
23 1998, shall be selected from the general public, and
24

1 i. one member, whose first term shall expire on June 15,
2 1999, shall be selected from the electric utilities
3 industry, and as such, shall be knowledgeable in
4 matters of air pollution and control.

5 4. Each member shall be appointed to serve a term of office of
6 seven (7) years.

7 The terms of all members shall be deemed to have expired on June
8 15 of the year of expiration, and shall continue until successors
9 have been duly appointed and qualified. If a vacancy occurs, the
10 Governor shall appoint a person for the remaining portion of the
11 unexpired term created by the vacancy. Five members of the Council
12 shall constitute a quorum.

13 5. The Council shall hold at least two regular meetings each
14 calendar year at a place and time to be fixed by the Council. The
15 Council shall select one of its members to serve as chair and
16 another of its members to serve as vice-chair at the first regular
17 meeting in each calendar year to serve as the chair and vice-chair
18 for the ensuing year. Special meetings may be called, and any
19 meeting may be canceled, by the chair, or by three members of the
20 Council by delivery of written notice to each member of the Council.

21 6. The jurisdictional areas of the Air Quality Council shall
22 include Article V of this chapter and such other areas as designated
23 by the Board.

1 H. In addition to other powers and duties assigned to each
2 Council pursuant to this Code, each Council shall, within its
3 jurisdictional area:

4 1. Have authority to recommend to the Board rules on behalf of
5 the Department. The Department shall not have standing to recommend
6 to the Board permanent rules or changes to such rules within the
7 jurisdiction of a Council which have not previously been submitted
8 to the appropriate Council for action;

9 2. Before recommending any permanent rules to the Board, give
10 public notice, offer opportunity for public comment and conduct a
11 public rulemaking hearing when required by the Administrative
12 Procedures Act;

13 3. Have the authority to make written recommendations to the
14 Board which have been concurred upon by at least a majority of the
15 membership of the Council;

16 4. Have the authority to provide a public forum for the
17 discussion of issues it considers relevant to its area of
18 jurisdiction, and to:

19 a. pass nonbinding resolutions expressing the sense of
20 the Council, and

21 b. make recommendations to the Board or Department
22 concerning the need and the desirability of conducting
23 meetings, workshops and seminars; and
24

1 5. Cooperate with each other Council, the public, the Board and
2 the Executive Director in order to coordinate the rules within their
3 respective jurisdictional areas and to achieve maximum efficiency
4 and effectiveness in furthering the objectives of the Department.

5 I. The Councils shall not recommend rules for promulgation by
6 the Environmental Quality Board unless all applicable requirements
7 of the Administrative Procedures Act have been followed, including
8 but not limited to notice, rule impact statement and rulemaking
9 hearings.

10 J. Members of the Councils shall serve without compensation but
11 may be reimbursed expenses incurred in the performance of their
12 duties, as provided in the State Travel Reimbursement Act. The
13 Councils are authorized to utilize the conference rooms of the
14 Department of Environmental Quality and obtain administrative
15 assistance from the Department, as required.

16 SECTION 8. AMENDATORY 47 O.S. 2021, Section 759, as last
17 amended by Section 14, Chapter 330, O.S.L. 2025 (47 O.S. Supp. 2025,
18 Section 759), is amended to read as follows:

19 Section 759. A. There is hereby re-created, ~~to continue until~~
20 ~~July 1, 2026, in accordance with the provisions of the Oklahoma~~
21 ~~Sunset Law,~~ the Board of Tests for Alcohol and Drug Influence to be
22 composed of the following members beginning July 1, 2015:

23 1. The Dean of the Oklahoma State University College of
24 Osteopathic Medicine, or a designee;

1 2. The Dean of the University of Oklahoma College of Medicine,
2 or a designee;

3 3. The Commissioner of Public Safety, or a designee;

4 4. The Director of the Oklahoma State Bureau of Investigation,
5 or a designee;

6 5. The State Commissioner of Health, or a designee;

7 6. The Director of the Council on Law Enforcement Education and
8 Training, or a designee;

9 7. One certified peace officer who is a member of a local law
10 enforcement agency selected by the Oklahoma Sheriffs and Peace
11 Officers Association; and

12 8. One person selected by the Oklahoma Association of Chiefs of
13 Police.

14 Members shall serve without pay other than reimbursement of
15 necessary and actual expenses as provided in the State Travel
16 Reimbursement Act. Each member shall receive an appointment in
17 writing which shall become a permanent part of the records of the
18 Board. The chair and vice-chair shall be elected from the
19 membership of the Board every two (2) years. The Board is
20 authorized to appoint a State Director of Tests for Alcohol and Drug
21 Influence and other employees, including, but not limited to,
22 persons to conduct training and provide administrative assistance as
23 necessary for the performance of its functions, subject to available
24 funding and authorized full-time equivalent employee limitations.

1 The Board may expend appropriated funds for purposes consistent with
2 Sections 751 through 761 of this title and Sections 301 through 308
3 of Title 3 of the Oklahoma Statutes. The Legislature shall
4 appropriate funds to the Department of Public Safety for the support
5 of the Board of Tests For Alcohol and Drug Influence and its
6 employees, if any. Upon the transfer of any employees from the
7 Alcohol Drug Countermeasures Unit of the Department of Public Safety
8 to the Board of Tests For Alcohol and Drug Influence on July 1,
9 2003, all funds of the Unit appropriated and budgeted shall be
10 transferred to the Board, and may be budgeted and expended to
11 support the functions and personnel of the Board.

12 B. The Board is authorized to prescribe uniform standards and
13 conditions for, and to approve satisfactory methods, procedures,
14 techniques, devices, equipment and records for, tests and analyses
15 and to prescribe and approve the requisite education and training
16 for the performance of tests or analyses of breath to determine the
17 breath alcohol concentration. The Board shall establish standards
18 for and ascertain the qualifications and competence of individuals
19 to administer tests and analyses of breath to determine the breath
20 alcohol concentration, and to issue permits to individuals which
21 shall be subject to suspension or revocation at the discretion of
22 the Board. The Board is authorized to prescribe uniform standards,
23 conditions, methods, procedures, techniques, devices, equipment and
24 records for the collection, handling, retention, storage,

1 preservation and delivery of specimens of blood, breath, saliva and
2 urine obtained for the purpose of determining the alcohol
3 concentration thereof or the presence or concentration of any other
4 intoxicating substance therein. The Board may take such other
5 actions as may be reasonably necessary or appropriate to effectuate
6 the purposes of Sections 751 through 761 of this title and Sections
7 301 through 308 of Title 3 of the Oklahoma Statutes, and may adopt,
8 amend and repeal such other rules consistent with this chapter as
9 the Board shall determine proper. The Board is authorized to
10 delegate authority granted in this section to the State Director of
11 Tests as it deems appropriate.

12 C. The Board shall promulgate rules adopting uniform standards
13 and conditions and rules approving devices, equipment, methods,
14 procedures, techniques, and records for screening tests administered
15 for the purpose of determining the presence or concentration of
16 alcohol or any other intoxicating substance in a person's blood,
17 breath, saliva or urine. Such screening tests shall be performed in
18 compliance with the rules adopted by the Board of Tests for Alcohol
19 and Drug Influence. For purposes of this subsection, "screening
20 test" means the use of devices, equipment, methods, procedures,
21 techniques and records by law enforcement officers at roadside to
22 assist in the development of probable cause.

23 D. The Board may set rules and charge appropriate fees for
24 operations incidental to its required duties and responsibilities.

1 E. There is hereby created in the State Treasury a revolving
2 fund for the Board of Tests for Alcohol and Drug Influence to be
3 designated the "Board of Tests for Alcohol and Drug Influence
4 Revolving Fund". The fund shall be a continuing fund, not subject
5 to fiscal year limitations, and shall consist of monies received
6 pursuant to the provisions of subsection D of this section and any
7 funds previously deposited in the Board of Tests for Alcohol and
8 Drug Influence Revolving Fund. All monies accruing to the credit of
9 the fund are hereby appropriated and may be budgeted and expended by
10 the Board of Tests for Alcohol and Drug Influence for operating
11 expenses of the Board. Expenditures from the funds shall be made
12 upon warrants issued by the State Treasurer against claims filed as
13 prescribed by law with the Director of the Office of Management and
14 Enterprise Services for approval and payment.

15 SECTION 9. AMENDATORY 52 O.S. 2021, Section 288.3, as
16 last amended by Section 1, Chapter 13, O.S.L. 2025 (52 O.S. Supp.
17 2025, Section 288.3), is amended to read as follows:

18 Section 288.3. There is hereby re-created ~~until July 1, 2031,~~
19 the Oklahoma Energy Resources Board ~~which shall be subject to the~~
20 ~~provisions of the Oklahoma Sunset Law.~~ The purpose of the Board is
21 to coordinate a program designed to demonstrate to the general
22 public the importance of the Oklahoma oil and natural gas
23 exploration and production industry, to encourage the wise and
24 efficient use of energy, to promote environmentally sound production

1 methods and technologies, to develop existing supplies of Oklahoma's
2 oil and natural gas resources, to support research and educational
3 activities concerning the oil and natural gas exploration and
4 production industry and to cause remediation of historical oilfield
5 environmental problems.

6 SECTION 10. AMENDATORY 59 O.S. 2021, Section 15.2, as
7 last amended by Section 1, Chapter 33, O.S.L. 2023 (59 O.S. Supp.
8 2025, Section 15.2), is amended to read as follows:

9 Section 15.2. A. There is hereby re-created,~~to continue until~~
10 ~~July 1, 2028, in accordance with the provisions of the Oklahoma~~
11 ~~Sunset Law,~~ the Oklahoma Accountancy Board. The Oklahoma
12 Accountancy Board shall have the responsibility for administering
13 and enforcing the Oklahoma Accountancy Act. The Oklahoma
14 Accountancy Board shall be composed of seven (7) members, who shall
15 have professional or practical experience in the use of accounting
16 services and financial matters, so as to be qualified to make
17 judgments about the qualifications and conduct of persons and firms
18 subject to regulation under the Oklahoma Accountancy Act to be
19 appointed by the Governor and confirmed by the Senate. The number
20 of registrant members shall not be more than five, not including a
21 firm, who shall serve terms of five (5) years. No member who has
22 served two successive complete terms shall be eligible for
23 reappointment, but an appointment to fill an unexpired term shall
24 not be considered a complete term for this purpose. One public

1 member shall serve coterminously with the Governor appointing the
2 public member. The other public member shall serve a term of five
3 (5) years.

4 B. Five members shall be certified public accountants holding
5 certificates and four shall hold permits issued pursuant to the
6 provisions of the Oklahoma Accountancy Act, at least four of whom
7 shall have been engaged in the practice of public accounting as a
8 certified public accountant continuously for not less than five (5)
9 out of the last fifteen (15) years immediately preceding their
10 appointments. A list of qualified persons shall be compiled and
11 submitted to the Governor by the Oklahoma Society of Certified
12 Public Accountants from time to time as appointments of the
13 certified public accountant Board members are required. A list of
14 three names shall be submitted for each single appointment from
15 which the Governor may make the appointment.

16 C. Two members shall be public members who are not certified
17 public accountants. One public member shall be appointed by the
18 Governor to a term coterminous with the Governor, to serve at his or
19 her pleasure. The other public member shall serve a term of five
20 (5) years and have professional or practical experience in the use
21 of accounting services and financial matters. A list of qualified
22 persons shall be compiled and submitted to the Governor by the
23 Oklahoma Society of Public Accountants, Oklahoma Society of
24 Certified Public Accountants, or successor organizations from time

1 to time as appointment of the Board member is required. A list of
2 three (3) names shall be submitted for each single appointment from
3 which the Governor may make the appointment.

4 D. Upon the expiration of the term of office, a member shall
5 continue to serve until a qualified successor has been appointed.
6 Confirmation by the Senate is required during the next regular
7 session of the Senate for the member to continue to serve.

8 SECTION 11. AMENDATORY 59 O.S. 2021, Section 46.4, as
9 last amended by Section 4, Chapter 138, O.S.L. 2024 (59 O.S. Supp.
10 2025, Section 46.4), is amended to read as follows:

11 Section 46.4. There is hereby re-created,~~to continue until~~
12 ~~July 1, 2026, in accordance with the provisions of the Oklahoma~~
13 ~~Sunset Law,~~ a board to be known as the "Board of Governors of the
14 Architects, Landscape Architects and Licensed Interior Designers of
15 Oklahoma", hereinafter referred to as the Board. The Board shall be
16 composed of eleven (11) members including six persons who are duly
17 licensed to practice architecture and are in good standing in this
18 state, two persons who are duly licensed to practice landscape
19 architecture and are in good standing in this state, two persons who
20 are duly licensed interior designers and who are active and in good
21 standing and one lay member. Each member of the Board shall be a
22 qualified elector of this state, and the architect, landscape
23 architect and licensed interior designer members shall have had five
24 (5) years' licensing experience as the professional position

1 requires in this state. Re-creation of the Board shall not alter
2 existing staggered terms. Board members, other than the lay member,
3 shall be appointed for a period of five (5) years thereafter;
4 provided, that nothing herein shall affect the tenure of office of
5 anyone who is a member of the Board on May 31, 1957. A member may
6 be reappointed to succeed such membership. The architect, landscape
7 architect or the licensed interior designer members may be appointed
8 by the Governor from a list of nominees submitted by respective
9 professional societies of this state. Membership in a professional
10 society shall not be a prerequisite to appointment to the Board.
11 The lay member of the Board shall be appointed by the Governor to a
12 term coterminous with that of the Governor. The lay member shall
13 serve at the pleasure of the Governor. Provided, the lay member may
14 continue to serve after the expiration of the term of the member
15 until such time as a successor is appointed. Vacancies which may
16 occur in the membership of the Board shall be filled by appointment
17 by the Governor. Each person who has been appointed to fill a
18 vacancy shall serve for the remainder of the term for which the
19 member the person shall succeed was appointed and until a successor,
20 in turn, has been appointed and shall have qualified. Each member
21 of the Board, before entering upon the discharge of the duties of
22 the member, shall make and file with the Secretary of State a
23 written oath or affirmation for the faithful discharge of official
24

1 duties. Each member of the Board and staff shall be reimbursed for
2 travel expenses pursuant to the State Travel Reimbursement Act.

3 SECTION 12. AMENDATORY 59 O.S. 2021, Section 137, as
4 amended by Section 1, Chapter 25, O.S.L. 2024 (59 O.S. Supp. 2025,
5 Section 137), is amended to read as follows:

6 Section 137. A. A Board of Podiatric Medical Examiners is
7 hereby re-created, ~~to continue until July 1, 2027, in accordance~~
8 ~~with the provisions of the Oklahoma Sunset Law.~~ The Board shall
9 regulate the practice of podiatric medicine in this state in
10 accordance with the provisions of the Podiatric Medicine Practice
11 Act. The Board, appointed by the Governor, shall be composed of
12 five podiatric physicians licensed to practice podiatric medicine in
13 this state and one lay member representing the public.

14 B. Each podiatric physician member of the Board shall:

15 1. Be a legal resident of this state;

16 2. Have practiced podiatric medicine continuously in this state
17 during the three (3) years immediately preceding appointment to the
18 Board;

19 3. Be free of pending disciplinary action or active
20 investigation by the Board; and

21 4. Be a member in good standing of the American Podiatric
22 Medical Association and of the Oklahoma Podiatric Medical
23 Association.

24 C. The lay member of the Board shall:

1 1. Be a legal resident of this state;

2 2. Not be a registered or licensed practitioner of any of the
3 healing arts or be related, within the third degree of consanguinity
4 or affinity, to any such person; and

5 3. Participate in Board proceedings only for the purposes of:

6 a. reviewing, investigating and disposing of written
7 complaints regarding the conduct of podiatric
8 physicians, and

9 b. formulating, adopting and promulgating rules pursuant
10 to Article I of the Administrative Procedures Act.

11 D. Except as provided in subsection E of this section, the term
12 of office of each podiatric physician member of the Board shall be
13 five (5) years, with one such member being appointed to the Board
14 each year. The lay member of the Board shall serve a term
15 coterminous with that of the Governor. Each member shall hold
16 office until the expiration of the term for which appointed or until
17 a qualified successor has been duly appointed. An appointment shall
18 be made by the Governor within ninety (90) days after the expiration
19 of the term of any member, or the occurrence of a vacancy on the
20 Board due to resignation, death, or any other cause resulting in an
21 unexpired term. The appointment of the podiatric physician members
22 shall be made from a list of not less than five persons submitted
23 annually to the Governor by the Oklahoma Podiatric Medical
24 Association.

1 E. Each of the three podiatric physician members of the Board,
2 serving on September 1, 1993, shall complete the term of office for
3 which he or she was appointed, and the successor to each such member
4 shall be appointed for a term of five (5) years. Within sixty (60)
5 days after September 1, 1993, the Governor shall appoint two new
6 podiatric physician members to the Board, one for a term expiring
7 July 1, 1997, and one for a term expiring on July 1, 1998. The
8 successor to each such new member shall be appointed for a term of
9 five (5) years.

10 F. Before assuming duties on the Board, each member shall take
11 and subscribe to the oath or affirmation provided in Article XV of
12 the Oklahoma Constitution, which oath or affirmation shall be
13 administered and filed as provided in such article.

14 G. A member may be removed from the Board by the Governor for
15 cause which shall include, but not be limited to:

- 16 1. Ceasing to be qualified;
- 17 2. Being found guilty by a court of competent jurisdiction of a
18 felony or of any offense involving moral turpitude;
- 19 3. Being found guilty, through due process, of malfeasance,
20 misfeasance or nonfeasance in relation to Board duties;
- 21 4. Being found mentally incompetent by a court of competent
22 jurisdiction;
- 23 5. Being found in violation of any provision of the Podiatric
24 Medicine Practice Act; or

6. Failing to attend three consecutive meetings of the Board without just cause, as determined by the Board.

SECTION 13. AMENDATORY 59 O.S. 2021, Section 161.4, as amended by Section 1, Chapter 1, O.S.L. 2024 (59 O.S. Supp. 2025, Section 161.4), is amended to read as follows:

Section 161.4. A. A Board of Chiropractic Examiners is hereby re-created ~~to continue until July 1, 2026, in accordance with the provisions of the Oklahoma Sunset Law.~~ The Board shall regulate the practice of chiropractic in this state in accordance with the provisions of the Oklahoma Chiropractic Practice Act. The Board, appointed by the Governor, shall be composed of eight chiropractic physicians and one lay member representing the public.

B. Each chiropractic physician member of the Board shall:

1. Be a legal resident of this state;

2. Have practiced chiropractic continuously in this state during the five (5) years immediately preceding appointment to the Board;

3. Be free of pending disciplinary action or active investigation by the Board;

4. Be a person of recognized professional ability, integrity and good reputation; and

5. Be in active clinical chiropractic practice at least fifty percent (50%) of the time.

C. The lay member of the Board shall:

1 1. Be a legal resident of this state; and

2 2. Not be a registered or licensed practitioner of any of the
3 healing arts or be related within the third degree of consanguinity
4 or affinity to any such person.

5 D. The Governor shall appoint members to the Board and for
6 terms of years as follows:

7 1. Position 1: Upon expiration of the term of the board member
8 whose term expires November 2, 2006, the Governor shall appoint a
9 board member from District 1 for a term of four (4) years to expire
10 on November 1, 2010, and every four (4) years thereafter;

11 2. Position 2: Upon expiration of the term of the board member
12 whose term expires November 1, 2005, the Governor shall appoint a
13 board member from District 2 for a term of four (4) years to expire
14 on November 1, 2009, and every four (4) years thereafter;

15 3. Position 3: Upon expiration of the term of the board member
16 whose term expires June 7, 2007, the Governor shall appoint a board
17 member from District 3 for a term of four (4) years to expire on
18 June 1, 2011, and every four (4) years thereafter;

19 4. Position 4: Upon expiration of the term of the board member
20 whose term expires November 1, 2007, the Governor shall appoint a
21 board member from District 4 for a term of four (4) years to expire
22 on November 1, 2011, and every four (4) years thereafter;

23 5. Position 5: Upon expiration of the term of the board member
24 whose term expires June 7, 2008, the Governor shall appoint a board

1 member from District 5 for a term of four (4) years to expire on
2 June 1, 2012, and every four (4) years thereafter;

3 6. Position 6: On June 1, 2005, the Governor shall appoint a
4 board member from District 6 for a term of one (1) year to expire on
5 June 1, 2006, and every four (4) years thereafter;

6 7. Position 7: On November 1, 2005, the Governor shall appoint
7 a board member from District 7 for a term of three (3) years to
8 expire on November 1, 2008, and every four (4) years thereafter;

9 8. Position 8: Upon expiration of the term of the board member
10 whose term expires June 7, 2005, the Governor shall appoint a board
11 member from the state at large for a term of four (4) years to
12 expire on June 1, 2009, and every four (4) years thereafter; and

13 9. Position 9: The lay member of the Board shall serve a term
14 coterminous with that of the Governor.

15 E. For the purpose of the Oklahoma Chiropractic Practice Act,
16 the state shall be divided into the following districts:

17 1. District 1: Alfalfa, Beaver, Beckham, Caddo, Cimarron,
18 Custer, Dewey, Ellis, Grant, Greer, Garfield, Harmon, Harper,
19 Jackson, Kiowa, Major, Noble, Roger Mills, Texas, Washita, Woods and
20 Woodward Counties;

21 2. District 2: Tulsa County;

22 3. District 3: Kay, Logan, Lincoln, Osage, Pawnee, Payne and
23 Pottawatomie Counties;

1 4. District 4: Carter, Comanche, Cotton, Garvin, Grady, Love,
2 Murray, Jefferson, Stephens and Tillman Counties;

3 5. District 5: Blaine, Canadian, Cleveland, Kingfisher,
4 McClain and Oklahoma Counties;

5 6. District 6: Atoka, Bryan, Coal, Choctaw, Creek, Hughes,
6 Johnston, Latimer, Le Flore, Marshall, McCurtain, Okfuskee,
7 Pittsburg, Pontotoc, Pushmataha and Seminole Counties; and

8 7. District 7: Adair, Cherokee, Craig, Delaware, Haskell,
9 Mayes, McIntosh, Muskogee, Nowata, Okmulgee, Ottawa, Rogers,
10 Sequoyah, Wagoner and Washington Counties.

11 Members appointed after June 2002 shall serve no more than two (2)
12 consecutive terms.

13 F. Each member shall hold office until the expiration of the
14 term of office for which appointed or until a qualified successor
15 has been duly appointed. An appointment shall be made by the
16 Governor within ninety (90) days after the expiration of the term of
17 any member, or the occurrence of a vacancy on the Board due to
18 resignation, death, or any other cause resulting in an unexpired
19 term.

20 G. Before assuming duties on the Board, each member shall take
21 and subscribe to the oath or affirmation provided in Article XV of
22 the Oklahoma Constitution, which oath or affirmation shall be
23 administered and filed as provided in the article.

1 H. A member may be removed from the Board by the Governor for
2 cause which shall include, but not be limited to:

3 1. Ceasing to be qualified;

4 2. Being found guilty by a court of competent jurisdiction of a
5 felony or any offense involving moral turpitude;

6 3. Being found guilty, through due process, of malfeasance,
7 misfeasance or nonfeasance in relation to Board duties;

8 4. Being found mentally incompetent by a court of competent
9 jurisdiction;

10 5. Being found in violation of any provision of the Oklahoma
11 Chiropractic Practice Act; or

12 6. Failing to attend three meetings of the Board without just
13 cause, as determined by the Board.

14 I. No member of the Board shall be:

15 1. A registered lobbyist;

16 2. An officer, board member or employee of a statewide
17 organization established for the purpose of advocating the interests
18 of chiropractors licensed pursuant to the Oklahoma Chiropractic
19 Practice Act; or

20 3. An insurance claims adjuster, reviewer, or consultant;
21 provided, however, a person shall not be considered to be a
22 consultant solely for testifying in a court as an expert witness.
23
24

1 SECTION 14. AMENDATORY 59 O.S. 2021, Section 199.2, as
2 amended by Section 2, Chapter 317, O.S.L. 2025, (59 O.S. Supp. 2025,
3 Section 199.2), is amended to read as follows:

4 Section 199.2. A. 1. There is hereby re-created, ~~to continue~~
5 ~~until July 1, 2025, in accordance with the provisions of the~~
6 ~~Oklahoma Sunset Law,~~ a State Board of Cosmetology and Barbering
7 which shall be composed of eleven (11) members to be appointed by
8 the Governor and to serve at the pleasure of the Governor.

9 2. One member shall be appointed from each congressional
10 district and the additional members shall be appointed at-large.
11 However, when congressional districts are redrawn, each member
12 appointed prior to July 1 of the year in which such modification
13 becomes effective shall complete the current term of office and
14 appointments made after July 1 of the year in which such
15 modification becomes effective shall be based on the redrawn
16 districts. Appointments made after July 1 of the year in which such
17 modification becomes effective shall be from any redrawn districts
18 which are not represented by a board member until such time as each
19 of the modified congressional districts are represented by a board
20 member. One member shall be a barber appointed at-large.

21 3. At the time of appointment, the members shall be citizens of
22 this state, at least twenty-five (25) years of age, and shall be
23 high school graduates. Six members shall, at the time of
24 appointment, have had at least five (5) years' continuous practical

1 experience in the practice of cosmetology in this state; one member
2 shall be appointed at-large and, at the time of the appointment,
3 have had at least five (5) years' continuous practical experience in
4 the practice of barbering in this state; one member shall be a lay
5 person; one member shall be an administrator of a licensed private
6 cosmetology school; one member shall be an administrator of a
7 licensed barber school; and one member shall be an administrator of
8 a public school licensed to teach cosmetology or barbering.

9 4. No two members shall be graduates of the same cosmetology
10 school, nor shall they be organizers of or promote the organization
11 of any cosmetic, beauty, or hairdressers' association. Each of the
12 eight cosmetology appointees shall continue to be actively engaged
13 in the profession of cosmetology while serving. No two members
14 engaged in the profession of barbering shall be organizers of or
15 promote the organization of any barbering association. Each of the
16 two barbering appointees shall continue to be actively engaged in
17 the profession of barbering while serving.

18 5. If any member retires or ceases to practice his or her
19 profession during the term of membership on the Board, such terms
20 shall automatically cease and the Governor shall appoint a like-
21 qualified person to fulfill the remainder of the term.

22 B. The terms of office for Board members shall be four (4)
23 years ending June 30.

24

1 C. Each member shall serve until a successor is appointed and
2 qualified.

3 D. Six members of the Board shall constitute a quorum for the
4 transaction of business.

5 E. The Governor may remove any member of the Board at any time
6 at the Governor's discretion. Vacancies shall be filled by
7 appointment by the Governor for the unexpired portion of the term.

8 F. The Board shall organize by electing from its membership a
9 chair and vice chair, each to serve for a period of one (1) year.
10 The presiding officer shall not be entitled to vote upon any
11 question except in the case of a tie vote.

12 Members shall be reimbursed for their actual and necessary
13 traveling expenses as provided by the State Travel Reimbursement
14 Act.

15 G. Within thirty (30) days after the end of each fiscal year,
16 the Board shall make a full report to the Governor of all its
17 receipts and expenditures, and also a full statement of its work
18 during the year, together with such recommendations as the Board
19 deems expedient.

20 H. The Board may expend funds for suitable office space for the
21 transaction of its business. The Board shall adopt a common seal
22 for the use of the executive director in authenticating Board
23 documents.

24

1 I. The Board shall meet at its office for the transaction of
2 such business as may come before it on the second Monday in January,
3 March, May, July, September, and November and at such other times as
4 it may deem advisable.

5 SECTION 15. AMENDATORY 59 O.S. 2021, Section 396, as
6 last amended by Section 1, Chapter 381, O.S.L. 2025 (59 O.S. Supp.
7 2025, Section 396), is amended to read as follows:

8 Section 396. There is hereby re-created, ~~to continue until July~~
9 ~~1, 2029, in accordance with the provisions of the Oklahoma Sunset~~
10 ~~Law,~~ the Oklahoma Funeral Board. Any reference in the statutes to
11 the Oklahoma State Board of Embalmers and Funeral Directors shall be
12 a reference to the Oklahoma Funeral Board. The Board shall consist
13 of seven (7) persons, who shall be appointed by the Governor. The
14 term of membership of each member of the Board shall be five (5)
15 years from the expiration of the term of the member succeeded. Any
16 member having served as a member of the Board shall be eligible for
17 reappointment. Provided, that a member of the Board shall serve no
18 more than two consecutive terms and any unexpired term that a member
19 is appointed to shall not apply to this limit. The Governor shall
20 appoint the necessary members to the Board upon vacancies and
21 immediately prior to the expiration of the various terms. Upon
22 request of the Governor, appointments of a licensed embalmer and
23 funeral director member of the Board shall be made from a list of
24 five qualified persons submitted by the Oklahoma Funeral Directors

1 Association. An appointment to fill a vacancy shall be for the
2 unexpired term. A member of the Board shall serve until a successor
3 is appointed and qualified. No person shall be a member of the
4 Board, unless, at the time of appointment, the person is of good
5 moral character and a resident of this state. Five of the members
6 shall have been actively engaged in the practice of embalming and
7 funeral directing in this state for not less than seven (7)
8 consecutive years immediately prior to the appointment of the
9 person, shall have an active license as provided by the Funeral
10 Services Licensing Act, shall keep the license effective, and shall
11 remain a resident of this state during the entire time the person
12 serves on the Board. Two of the members of the Board shall be
13 chosen from the general public, one of whom shall, if possible, be a
14 person licensed and actively engaged in the health care field, and
15 shall not be licensed funeral directors or embalmers or have any
16 interest, directly or indirectly, in any funeral establishment or
17 any business dealing in funeral services, supplies, or equipment.
18 These two members shall be appointed to serve for five-year terms.

19 SECTION 16. AMENDATORY 59 O.S. 2021, Section 475.3, as
20 last amended by Section 11, Chapter 147, O.S.L. 2024 (59 O.S. Supp.
21 2025, Section 475.3), is amended to read as follows:

22 Section 475.3. A. The State Board of Licensure for
23 Professional Engineers and Surveyors is hereby re-created, ~~to~~
24 ~~continue until July 1, 2026, in accordance with the provisions of~~

1 ~~the Oklahoma Sunset Law~~, whose duty it shall be to administer the
2 provisions of Section 475.1 et seq. of this act ~~act~~ title. The Board
3 shall consist of four professional engineers and two professional
4 surveyors, at least one of whom is not a professional engineer, all
5 of whom shall be appointed by the Governor, with the advice and
6 consent of the Oklahoma State Senate. The Governor shall also
7 appoint one lay member. The professional engineers and professional
8 surveyors shall have the qualifications required by this act.

9 B. Each member of the Board shall file with the Secretary of
10 State a written oath or affirmation for the faithful discharge of
11 official duties.

12 C. Appointments to the Board shall be in such manner and for
13 such period of time so that no two terms, with the exception of the
14 lay member, shall expire in the same year. On the expiration of the
15 term of any member, except the lay member, the Governor shall in the
16 manner herein provided appoint for a term of six (6) years a
17 professional engineer or professional surveyor having the
18 qualifications required in this act. The lay member of the Board
19 shall be appointed by the Governor to a term coterminous with that
20 of the Governor. The lay member shall serve at the pleasure of the
21 Governor. Provided, the lay member may continue to serve after the
22 expiration of the member's term until such time as a successor is
23 appointed. Members may be reappointed to succeed themselves. Each
24 member may hold office until the expiration of the term for which

1 appointed or until a successor has been duly appointed and has
2 qualified. In the event of a vacancy on the Board due to
3 resignation, death or for any cause resulting in an unexpired term,
4 if not filled within three (3) months, the Board may appoint a
5 provisional member to serve in the interim until the Governor acts.

6 SECTION 17. AMENDATORY 59 O.S. 2021, Section 481, as
7 last amended by Section 1, Chapter 14, O.S.L. 2025 (59 O.S. Supp.
8 2025, Section 481), is amended to read as follows:

9 Section 481. A State Board of Medical Licensure and Supervision
10 hereinafter referred to as the "Board", is hereby re-created, ~~to~~
11 ~~continue until July 1, 2030, in accordance with the provisions of~~
12 ~~the Oklahoma Sunset Law.~~ The Board shall be composed of seven (7)
13 allopathic physicians licensed to practice medicine in this state
14 and represent the public and four (4) lay members. The physician
15 members of the Board shall be graduates of legally chartered medical
16 schools recognized by the Oklahoma State Regents for Higher
17 Education or the Liaison Council on Medical Education. The
18 physician members shall have actively practiced as licensed
19 physicians continuously in this state for the three (3) years
20 immediately preceding their appointment to the Board. All members
21 of the Board shall be residents of this state and shall be appointed
22 by the Governor as provided for in Section 482 of this title. All
23 present members of the Board shall continue to serve for the
24 remainder of their current terms.

1 SECTION 18. AMENDATORY 59 O.S. 2021, Section 582, as
2 amended by Section 1, Chapter 252, O.S.L. 2023 (59 O.S. Supp. 2025,
3 Section 582), is amended to read as follows:

4 Section 582. There is hereby re-created, ~~to continue until July~~
5 ~~1, 2026, in accordance with the provisions of the Oklahoma Sunset~~
6 ~~Law,~~ the Board of Examiners in Optometry. This Board shall consist
7 of five (5) persons, four of whom shall possess sufficient knowledge
8 of theoretical and practical optics to practice optometry, be duly
9 licensed as optometrists, and who shall have been residents of this
10 state actually engaged in the practice of optometry for at least
11 five (5) years. The term of each licensed optometrist member of the
12 Board, one being appointed each year, shall be five (5) years, or
13 until a qualified successor is appointed. The lay member of the
14 Board shall serve a term coterminous with that of the Governor and
15 shall serve at the pleasure of the Governor. The Governor is hereby
16 authorized to appoint a member of the Board of Examiners in
17 Optometry at the expiration of any term or whenever, for any reason,
18 a vacancy may occur on the Board. Vacancies shall be filled for the
19 unexpired term only.

20 SECTION 19. AMENDATORY 59 O.S. 2021, Section 698.3, as
21 amended by Section 1, Chapter 15, O.S.L. 2025 (59 O.S. Supp. 2025,
22 Section 698.3) is amended to read as follows:

23 Section 698.3. A. The State Board of Veterinary Medical
24 Examiners is hereby re-created, ~~to continue until July 1, 2030, in~~

1 ~~accordance with the provisions of the Oklahoma Sunset Law,~~ to
2 regulate and enforce the practice of veterinary medicine in this
3 state in accordance with the Oklahoma Veterinary Practice Act.

4 B. 1. The duty of determining a person's initial and
5 continuing qualification and fitness for the practice of veterinary
6 medicine, of proceeding against the unlawful and unlicensed practice
7 of veterinary medicine and of enforcing the Oklahoma Veterinary
8 Practice Act is hereby delegated to the Board. That duty shall be
9 discharged in accordance with the Oklahoma Veterinary Practice Act
10 and other applicable statutes.

11 2. a. It is necessary that the powers conferred on the Board
12 by the Oklahoma Veterinary Practice Act be construed
13 to protect the health, safety and welfare of the
14 people of this state.

15 b. No member of the Board, acting in that capacity or as
16 a member of any Board committee, shall participate in
17 the making of any decision or the taking of any action
18 affecting such member's own personal, professional or
19 pecuniary interest, or that of a person related to the
20 member within the third degree by consanguinity,
21 marriage or adoption or of a business or professional
22 associate.

23 c. With advice of legal counsel, the Board shall adopt
24 and annually review a conflict of interest policy to

1 enforce the provisions of the Oklahoma Veterinary
2 Practice Act.

3 C. The practice of veterinary medicine is a privilege granted
4 by the people of this state acting through their elected
5 representatives. It is not a natural right of individuals. In the
6 interest of the public, and to protect the public, it is necessary
7 to provide laws and rules to govern the granting and subsequent use
8 of the privilege to practice veterinary medicine. The primary
9 responsibility and obligation of the Board is to protect the public
10 from the unprofessional, improper, incompetent and unlawful practice
11 of veterinary medicine.

12 D. The liability of any member or employee of the Board acting
13 within the scope of Board duties or employment shall be governed by
14 The Governmental Tort Claims Act.

15 SECTION 20. AMENDATORY 59 O.S. 2021, Section 1000.2, as
16 last amended by Section 121, Chapter 452, O.S.L. 2024 (59 O.S. Supp.
17 2025, Section 1000.2), is amended to read as follows:

18 Section 1000.2. A. The Construction Industries Board is hereby
19 re-created ~~to continue until July 1, 2026, in accordance with the~~
20 ~~provisions of the Oklahoma Sunset Law.~~ The Board shall regulate the
21 plumbing, electrical and mechanical trades, the building and
22 construction inspectors, the home inspectors, and the roofing
23 contractors through the powers and duties set forth in the
24

1 Construction Industries Board Act and in the respective licensing or
2 registration acts for such trades, or as otherwise provided by law.

3 B. 1. Beginning July 1, 2013, the Board shall be composed of
4 seven (7) members appointed by the Governor with the advice and
5 consent of the Oklahoma State Senate, as follows:

6 a. two members shall have at least ten (10) years'
7 experience in the plumbing trade, of which one shall
8 be a plumbing contractor and one shall be a journeyman
9 plumber,

10 b. two members shall have at least ten (10) years'
11 experience in the electrical trade, of which one shall
12 be an electrical contractor and one shall be a
13 journeyman electrician,

14 c. two members shall have at least ten (10) years'
15 experience in the mechanical trade, of which one shall
16 be a mechanical contractor and one shall be a
17 mechanical journeyman, and

18 d. one member shall have at least ten (10) years'
19 experience as a building and construction inspector.

20 2. Members shall be appointed for staggered terms of four (4)
21 years, as designated by the Governor. Members shall continue in
22 office until a successor is appointed by the Governor. The Governor
23 shall fill all vacancies and unexpired terms in the same manner as
24

1 the original appointment of the member whose position is to be
2 filled. A member may be removed by the Governor at any time.

3 SECTION 21. AMENDATORY 59 O.S. 2021, Section 1253, as
4 last amended by Section 1, Chapter 263, O.S.L. 2025 (59 O.S. Supp.
5 2025, Section 1253), is amended to read as follows:

6 Section 1253. A. There is hereby re-created, ~~to continue until~~
7 ~~July 1, 2027, in accordance with the provisions of the Oklahoma~~
8 ~~Sunset Law,~~ the State Board of Licensed Social Workers, consisting
9 of seven (7) members.

10 B. Three of the members of the Board shall be licensed social
11 workers or licensed clinical social workers licensed pursuant to the
12 provisions of the Social Worker's Licensing Act. Two members shall
13 be licensed as either social work associates or master's social
14 workers. One member shall be the president of the Oklahoma Chapter
15 of the National Association of Social Workers. The remaining member
16 of the Board shall be selected from and shall represent the general
17 public.

18 C. Responsibility for enforcement of the provisions of the
19 Social Worker's Licensing Act is hereby vested in the State Board of
20 Social Work. The Board shall have all of the duties, powers, and
21 authority specifically granted by, or necessary for, the enforcement
22 of the Social Worker's Licensing Act as well as other duties,
23 powers, and authority it may be granted by applicable law.

1 D. 1. Each member of the Board appointed as a social worker
2 shall:

3 a. be a resident of this state,

4 b. be licensed in good standing to engage in the practice
5 of social work in this state,

6 c. at the time of appointment, have been actively engaged
7 in the practice of social work for at least one (1)
8 year out of the last five (5) years, and

9 d. have at least three (3) years of experience in the
10 practice of social work.

11 2. Each member of the Board appointed to represent the general
12 public shall be a resident of this state who has attained the age of
13 majority and shall not be, nor shall ever have been, a social work
14 licensee, or the spouse of a social work licensee, or a person who
15 has ever had any material financial interest in the provision of
16 social work services or has engaged in any activity directly related
17 to the practice of social work.

18 SECTION 22. AMENDATORY 59 O.S. 2021, Section 1354, as
19 last amended by Section 1, Chapter 265, O.S.L. 2025 (59 O.S. Supp.
20 2025, Section 1354), is amended to read as follows:

21 Section 1354. There is hereby re-created,~~to continue until~~
22 ~~July 1, 2028, pursuant to the provisions of the Oklahoma Sunset Law,~~
23 the State Board of Examiners of Psychologists. The Board shall
24 administer the provisions of the Psychologists Licensing Act. The

1 Board shall consist of seven (7) members appointed by the Governor.
2 Five members shall be psychologists from various areas in psychology
3 and two members shall be lay persons. At the expiration of the term
4 of each Board member who is a psychologist, the Governor shall
5 appoint a successor from a list of ten licensed psychologists which
6 is provided by the Oklahoma Psychological Association. Members
7 shall serve for a term of four (4) years and until a successor is
8 appointed and qualified. Before entering upon the duties of office,
9 each member of the Board shall take the constitutional oath of
10 office and file it with the Secretary of State.

11 SECTION 23. AMENDATORY 59 O.S. 2021, Section 1455, as
12 amended by Section 1, Chapter 87, O.S.L. 2023 (59 O.S. Supp. 2025,
13 Section 1455), is amended to read as follows:

14 Section 1455. A. There is hereby re-created, ~~to continue until~~
15 ~~July 1, 2026, in accordance with the provisions of the Oklahoma~~
16 ~~Sunset Law,~~ the Polygraph Examiners Board.

17 B. 1. The persons serving on the Board on June 30, 1988, shall
18 continue to serve the full terms for which they were originally
19 appointed until their successors have been duly appointed and
20 approved with the advice and consent of the Senate. All future
21 Boards shall continue the staggered terms of office established for
22 the Polygraph Examiners Board prior to July 1, 1988.

23 2. Any actions taken by any state agency on behalf of the
24 Polygraph Examiners Board or in an attempt to enforce the provisions

1 of the Polygraph Examiners Act shall be subject to review by the
2 Board. Any such acts may be rescinded or modified as deemed
3 appropriate by the Board, provided that such action shall not affect
4 any accrued right, or penalty incurred, or proceeding begun between
5 July 1, 1988, and October 12, 1988.

6 3. All funds collected after June 30, 1988, equipment, files,
7 fixtures, furniture, and supplies of the Board which were
8 transferred to the Office of Management and Enterprise Services or
9 State Treasury pursuant to Section 3909 of Title 74 of the Oklahoma
10 Statutes shall be returned to the care and custody of the Board.

11 4. All orders, determinations, rules, regulations, permits,
12 certificates, licenses, contracts, rates, and privileges which have
13 been issued, made, granted, or allowed by the Board and are in
14 effect on June 30, 1988, shall continue in effect according to their
15 terms until further action is taken by the Board or as modified by
16 law.

17 C. The Board shall consist of five (5) members who shall be
18 citizens of the United States and residents of the state for at
19 least two (2) years prior to appointment, all of whom shall have
20 been engaged for a period of two (2) consecutive years as polygraph
21 examiners prior to appointment to the Board, and at the time of
22 appointment active polygraph examiners. No two Board members may be
23 employed by the same person or agency. No more than two members may
24 be appointed from one congressional district. However, when

1 congressional districts are redrawn, each member appointed prior to
2 July 1 of the year in which such modification becomes effective
3 shall complete the current term of office and appointments made
4 after July 1 of the year in which such modification becomes
5 effective shall be based on the redrawn districts. No appointments
6 may be made after July 1 of the year in which such modification
7 becomes effective if such appointment would result in more than two
8 members serving from the same modified district. At least two
9 members must be qualified examiners of a governmental law
10 enforcement agency and at least two members must be qualified
11 polygraph examiners in the commercial field. The members shall be
12 appointed by the Governor of the State of Oklahoma, with the advice
13 and consent of the Senate, for terms of six (6) years. Any vacancy
14 in an unexpired term shall be filled by appointment of the Governor,
15 with the advice and consent of the Senate, for the unexpired term.
16 Except as authorized by the Polygraph Examiners Act, members of the
17 Board shall be paid no fee, expense reimbursement, wage or other
18 compensation for their services.

19 D. The vote of a majority of the Board members is sufficient
20 for passage of any business or proposal which comes before the
21 Board. The Board shall elect a chair, vice-chair, and secretary
22 from among its members.
23
24

1 SECTION 24. AMENDATORY 59 O.S. 2021, Section 1607, as
2 amended by Section 1, Chapter 26, O.S.L. 2024 (59 O.S. Supp. 2025,
3 Section 1607), is amended to read as follows:

4 Section 1607. A. There is hereby re-created,~~to continue until~~
5 ~~July 1, 2027, in accordance with the provisions of the Oklahoma~~
6 ~~Sunset Law,~~ the Board of Examiners for Speech-Language Pathology and
7 Audiology whose duty it is to administer the provisions of the
8 Speech-Language Pathology and Audiology Licensing Act. The members
9 of the Board shall be residents of this state and shall be appointed
10 by the Governor with the advice and consent of the Senate. The
11 Board shall be composed of five (5) members consisting of three
12 licensed speech-language pathologists or audiologists, provided that
13 at least one of the three shall be a licensed speech-language
14 pathologist and at least one, a licensed audiologist; one
15 otolaryngologist who is certified by the American Board of
16 Otolaryngology and one lay member.

17 B. The members of the original Board shall serve the following
18 terms: one member for one (1) year, two members for two (2) years,
19 and two members for three (3) years. Thereafter, at the expiration
20 of the term, or termination of the member's service for any reason,
21 the Governor shall appoint each successor for a term of three (3)
22 years, or for the remainder of an unexpired term. The successor for
23 any of the three speech-language pathologists or audiologists will
24 be selected from a list of five licensed speech-language

1 pathologists or audiologists, furnished by the Oklahoma Speech-
2 Language-Hearing Association. The re-creation of the Board shall
3 not affect the staggered terms of office for Board members
4 established with the original Board.

5 C. Before entering upon the duties of the member's office, each
6 member of the Board shall take the constitutional oath of office and
7 file it with the Secretary of State.

8 D. Board members may be reappointed to serve one additional
9 three-year term. Three (3) years after the termination of a
10 previous appointment to the Board, a member may be reappointed for
11 one additional three-year term.

12 E. Board members shall be reimbursed for travel expenses
13 incurred in the performance of their duties as provided in the State
14 Travel Reimbursement Act.

15 SECTION 25. AMENDATORY 59 O.S. 2021, Section 1873, as
16 last amended by Section 1, Chapter 266, O.S.L. 2025 (59 O.S. Supp.
17 2025, Section 1873), is amended to read as follows:

18 Section 1873. A. There is hereby re-created,~~to continue until~~
19 ~~July 1, 2028, in accordance with the provisions of the Oklahoma~~
20 ~~Sunset Law,~~ the Oklahoma Board of Licensed Alcohol and Drug
21 Counselors, consisting of seven (7) members, to be appointed by the
22 Governor, with the advice and consent of the Senate, as follows:

- 23 1. a. Six members who shall be alcohol and drug counselors
24 certified by an entity recognized to do professional

1 alcohol and drug counseling certification in this
2 state; provided, however, five of such members shall
3 subsequently secure licensure and one such member
4 shall subsequently secure certification, pursuant to
5 the provisions of the Licensed Alcohol and Drug
6 Counselors Act, no later than January 1, 2005.

7 b. Thereafter, five members shall be licensed alcohol and
8 drug counselors at the time of appointment, and one
9 member shall be certified as an alcohol and drug
10 counselor at the time of appointment.

11 c. Pursuant to the provisions of this paragraph, the
12 Governor shall appoint:

13 (1) four members from a list of names submitted by
14 the Oklahoma Drug and Alcohol Professional
15 Counselor Association,

16 (2) one member from a list of names submitted by the
17 Oklahoma Substance Abuse Services Alliance, and

18 (3) one member from a list of names submitted by the
19 Oklahoma Citizen Advocates for Recovery and
20 Transformation Association.

21 d. One member shall be appointed from and shall represent
22 the general public. Such member shall be a resident
23 of this state who has attained the age of majority and
24 shall not be, nor shall ever have been, a licensed or

1 certified alcohol and drug counselor, or the spouse of
2 a licensed or certified alcohol and drug counselor, or
3 a person who has ever had any material financial
4 interest in the provision of alcohol and drug
5 counseling services or has engaged in any activity
6 directly related to the practice of alcohol and drug
7 counseling.

8 2. The composition of the Board shall include five members who
9 hold a master's or higher degree and one member whose highest degree
10 held is a bachelor's degree.

11 3. The Governor shall appoint the members to the Board no later
12 than July 1, 2004.

13 B. Each member of the Board appointed as a licensed alcohol and
14 drug counselor shall:

15 1. Be certified or licensed to engage in the practice of
16 alcohol and drug counseling in this state and shall be in good
17 standing; and

18 2. Have at least three (3) years of experience in the practice
19 of alcohol and drug counseling in this state.

20 C. Two of the members initially appointed shall serve three-
21 year terms; two shall serve four-year terms; and three shall serve
22 five-year terms, as designated by the Governor. Thereafter, the
23 terms of all members shall be five (5) years.

1 D. A vacancy on the Board shall be filled in the same manner as
2 the original appointment for the balance of the unexpired term.
3 Members may succeed themselves but shall serve no more than two
4 consecutive terms. Each member shall serve until a successor is
5 appointed and qualified.

6 E. Members of the Board may be removed from office for one or
7 more of the following reasons:

8 1. The refusal or inability for any reason to perform the
9 duties of a Board member in an efficient, responsible and
10 professional manner;

11 2. The misuse of office for pecuniary or material gain or for
12 personal advantage for self or another;

13 3. A violation of the laws or rules governing the practice of
14 alcohol and drug counseling; or

15 4. Conviction of a felony as verified by a certified copy of
16 the record of the court of conviction.

17 F. Members of the Board shall serve without compensation, but
18 shall be reimbursed for actual and necessary travel expenses as
19 provided in the State Travel Reimbursement Act.

20 SECTION 26. AMENDATORY 59 O.S. 2021, Section 2053, as
21 amended by Section 1, Chapter 76, O.S.L. 2024 (59 O.S. Supp. 2025,
22 Section 2053), is amended to read as follows:

23 Section 2053. A. There is hereby re-created ~~until July 1,~~
24 ~~2027, in accordance with the provisions of the Oklahoma Sunset Law,~~

1 the State Board of Examiners of Perfusionists. The Board shall
2 administer the provisions of the Oklahoma Licensed Perfusionists
3 Act. The Board shall consist of nine (9) members, appointed by the
4 State Board of Medical Licensure and Supervision.

5 B. The initial appointments for each member shall be for
6 progressive terms of one (1) through three (3) years so that only
7 one term expires each calendar year; subsequent appointments shall
8 be for five-year terms. Members of the Board shall serve at the
9 pleasure of and may be removed from office by the appointing
10 authority. No member shall serve more than three consecutive terms.
11 Members shall continue to serve until their successors are
12 appointed. Any vacancy shall be filled in the same manner as the
13 original appointments. Five members shall constitute a quorum.

14 C. The Board shall be composed as follows:

15 1. Three members shall be members of the general public;

16 2. Four members shall be licensed perfusionists appointed from
17 a list of not less than ten licensed perfusionists submitted by a
18 statewide organization representing licensed perfusionists; and

19 3. Two members shall be physicians licensed pursuant to the
20 Oklahoma Allopathic Medical and Surgical Licensure and Supervision
21 Act and who are also board certified in cardiovascular surgery.

22 D. The licensed perfusionist members shall have been engaged in
23 rendering perfusion services to the public, teaching perfusion care,
24 or research in perfusion care, for at least five (5) years

1 immediately preceding their appointments. These members shall at
2 all times be holders of valid licenses for the practice of perfusion
3 in this state, except for the members first appointed to the Board.
4 These initial members shall, at the time of appointment, be
5 credentialed as a Certified Clinical Perfusionist (CCP) conferred by
6 the American Board of Cardiovascular Perfusion (ABCP) or its
7 successor organization, and all shall fulfill the requirements for
8 licensure pursuant to the Oklahoma Licensed Perfusionists Act. All
9 members of the Board shall be residents of this state.

10 E. Upon expiration or vacancy of the term of a member, the
11 respective nominating authority may, as appropriate, submit to the
12 appointing authority a list of not less than three persons qualified
13 to serve on the Board to fill the expired term of their respective
14 member. Appointments may be made from these lists by the appointing
15 authority and additional lists may be provided by the respective
16 organizations if requested by the appointing authority.

17 F. It shall be a ground for removal from the Board if a member:

18 1. Does not have at the time of appointment the qualifications
19 required for appointment to the Board;

20 2. Does not maintain during service on the Board the
21 qualifications required for appointment to the Board;

22 3. Violates a prohibition established pursuant to the Oklahoma
23 Licensed Perfusionists Act;

1 4. Cannot discharge the member's term for a substantial part of
2 the term for which the member is appointed because of illness or
3 disability; or

4 5. Is absent from more than half of the regularly scheduled
5 board meetings that the member is eligible to attend during a
6 calendar year unless the absence is excused by a majority vote of
7 the Board.

8 SECTION 27. AMENDATORY 59 O.S. 2021, Section 6001, as
9 last amended by Section 1, Chapter 89, O.S.L. 2023 (59 O.S. Supp.
10 2025, Section 6001), is amended to read as follows:

11 Section 6001. A. 1. There is hereby re-created the State
12 Board of Behavioral Health Licensure ~~to continue until July 1, 2025,~~
13 ~~in accordance with the provisions of the Oklahoma Sunset Law.~~

14 2. Members of the Board shall serve at the pleasure of and may
15 be removed from office by the appointing authority. Members shall
16 continue to serve until their successors are appointed. Any vacancy
17 shall be filled in the same manner as the original appointments.
18 Four members shall constitute a quorum.

19 3. The Board shall meet at least twice a year, but no more than
20 four (4) times a year and shall elect a chair and a vice-chair from
21 among its members. The Board shall only meet as required for:

- 22 a. election of officers,
- 23 b. establishment of meeting dates and times,
- 24 c. rule development,

1 d. review and recommendation, and

2 e. adoption of nonbinding resolutions to the Board
3 concerning matters brought before the Board.

4 4. Special meetings may be called by the chair or by
5 concurrence of any three members.

6 B. 1. All members of the Board shall be knowledgeable of
7 counseling issues. The Board shall be appointed by the Governor
8 with the advice and consent of the Senate:

9 a. four members who are licensed professional counselors,

10 b. three members who are licensed family and marital
11 therapists,

12 c. two members who are licensed behavioral practitioners,
13 and

14 d. two members representing the public and possessing
15 knowledge of counseling issues.

16 2. Members of the Board shall serve for a period of three (3)
17 years and may be removed at any time by the appointing authority.
18 Vacancies on the Board shall be filled by the appointing authority.
19 A majority of the Board shall constitute a quorum for the
20 transaction of business.

21 3. The members of the Board from each professional area of
22 behavioral health counseling shall comprise separate committees and
23 shall consult on professional issues within their respective areas
24 of behavioral health counseling. Each committee shall recommend to

1 the Board approval or disapproval of all licenses to be issued
2 within its specialty. Each committee shall be authorized to
3 recommend approval or disapproval of the examination requirements
4 for all applicants for licensure in the respective area of
5 behavioral health counseling, provide grading standards for
6 examinations, and provide for other matters relating to licensure in
7 that area of behavioral health counseling. Each committee may
8 create advisory committees to consult on professional duties and
9 responsibilities pursuant to the provisions of this section.

10 4. Any and all recommendations, approvals, or disapprovals made
11 by a committee pursuant to the provisions of this section shall not
12 become effective without the approval of a majority of members of
13 the Board.

14 5. The jurisdictional areas of the Board shall include
15 professional counseling licensing and practice issues, marital and
16 family therapist licensing and practice issues, behavioral
17 practitioner licensing and practice issues and such other areas as
18 authorized by the Licensed Professional Counselors Act.

19 C. The Board shall not recommend rules for promulgation unless
20 all applicable requirements of the Administrative Procedures Act
21 have been followed including but not limited to notice, rule impact
22 statements and rule-making hearings.

23 D. Members of the Board shall serve without compensation but
24 may be reimbursed for expenses incurred in the performance of their

1 duties, as provided in the State Travel Reimbursement Act. The
2 Board is authorized to utilize the conference rooms of and obtain
3 administrative assistance from the State Board of Medical Licensure
4 and Supervision as required.

5 E. The Board is authorized and empowered to:

6 1. Establish and maintain a system of licensure and
7 certification pursuant to the provisions of the Licensed
8 Professional Counselors Act;

9 2. Adopt and enforce standards governing the professional
10 conduct of persons licensed pursuant to the provisions of the
11 Licensed Professional Counselors Act;

12 3. Lease office space for the purpose of operating and
13 maintaining a state office, and pay rent thereon; provided, however,
14 such state office shall not be located in or directly adjacent to
15 the office of any person licensed pursuant to the provisions of the
16 Licensed Professional Counselors Act;

17 4. Purchase office furniture, equipment, and supplies;

18 5. Employ such office personnel as may be necessary, and fix
19 and pay their salaries or wages;

20 6. Contract with state agencies for the purposes of
21 investigating written complaints regarding the conduct of persons
22 licensed pursuant to the provisions of the Licensed Professional
23 Counselors Act and obtaining administrative assistance as deemed
24 necessary by the Executive Director; and

1 7. Make such other expenditures as may be necessary in the
2 performance of its duties.

3 F. The Board shall employ an Executive Director. The Executive
4 Director shall be authorized to:

- 5 1. Employ and maintain an office staff;
6 2. Enter into contracts on behalf of the Board; and
7 3. Perform other duties on behalf of the Board as needed or
8 directed.

9 G. All employees and positions shall be placed in unclassified
10 status, exempt from the provisions of the Oklahoma Personnel Act.

11 SECTION 28. AMENDATORY 63 O.S. 2021, Section 1-1923, as
12 amended by Section 1, Chapter 197, O.S.L. 2023 (63 O.S. Supp. 2025,
13 Section 1-1923), is amended to read as follows:

14 Section 1-1923. A. There is hereby re-created, ~~to continue~~
15 ~~until July 1, 2025, in accordance with the provisions of the~~
16 ~~Oklahoma Sunset Law,~~ a Long-Term Care Facility Advisory Council
17 which shall be composed as follows:

18 1. The Governor shall appoint a thirteen-member Long-Term Care
19 Facility Advisory Council which shall advise the State Commissioner
20 of Health. The Advisory Council shall be comprised of the following
21 persons:

- 22 a. one representative from the Oklahoma Health Care
23 Authority, designated by the Administrator,
24

- b. one representative from the Department of Mental Health and Substance Abuse Services, designated by the Commissioner of Mental Health and Substance Abuse Services,
- c. one representative from the Department of Human Services, designated by the Director of Human Services,
- d. one member who shall be a licensed general practitioner of the medical or osteopathic profession,
- e. one member who shall be a registered pharmacist,
- f. one member who shall be a licensed registered nurse or licensed practical nurse,
- g. one member who shall be an operator-administrator of a nursing home which has a current license issued pursuant to the Nursing Home Care Act and who shall have had five (5) years' experience in the nursing home profession as an operator-administrator,
- h. one member who shall be an operator-administrator of a residential care home licensed pursuant to the provisions of the Residential Care Act,
- i. one member who shall be an owner-operator of an adult day care facility licensed pursuant to the provisions of the Adult Day Care Act,

1 j. one member who shall be an owner-operator of a
2 continuum of care facility or assisted living center
3 licensed pursuant to the provisions of the Continuum
4 of Care and Assisted Living Act,

5 k. two members who shall be over the age of sixty-five
6 (65) who shall represent the general public and have
7 no long-term care professional work history, and

8 l. one member who shall be over the age of sixty-five
9 (65) who shall represent the general public and who
10 advocates for individuals receiving long-term care
11 services; and

12 2. Appointments shall be for two-year terms. Members shall
13 serve at the pleasure of their designators. Members may be
14 reappointed not to exceed two terms. In case of a vacancy, the
15 Governor shall appoint individuals to fill the remainder of the
16 term.

17 B. The State Department of Health shall provide administrative
18 support to perform designated duties of the Advisory Council. The
19 Department shall also provide space for meetings of the Advisory
20 Council.

21 C. The Advisory Council shall annually elect a chair, vice-
22 chair and secretary-treasurer, shall meet at least quarterly, and
23 may hold such special meetings as may be necessary. The members of
24

1 the Advisory Council shall be reimbursed as provided for by the
2 State Travel Reimbursement Act.

3 D. The Advisory Council shall have the power and duty to:

4 1. Serve as an advisory body to the Department for the
5 development and improvement of services to and care and treatment of
6 residents of facilities subject to the provisions of the Nursing
7 Home Care Act, homes subject to the provisions of the Residential
8 Care Act and facilities subject to the provisions of the Adult Day
9 Care Act;

10 2. Review and make recommendations regarding quality of
11 services, care, and treatment provided to individuals receiving
12 services from entities that are subject to the Nursing Home Care
13 Act, the Residential Care Act and the Adult Day Care Act; and

14 3. Evaluate and review the standards, practices, and procedures
15 regarding the administration and enforcement of the provisions of
16 the Nursing Home Care Act, the Residential Care Act and the Adult
17 Day Care Act.

18 SECTION 29. AMENDATORY 63 O.S. 2021, Section 91, as last
19 amended by Section 1, Chapter 264, O.S.L. 2025 (63 O.S. Supp. 2025,
20 Section 91), is amended to read as follows:

21 Section 91. A. There is hereby re-created, ~~to continue until~~
22 ~~July 1, 2030, in accordance with the provisions of the Oklahoma~~
23 ~~Sunset Law,~~ an oversight board to be known as the State Anatomical
24 Board, to be composed of the following members:

1 1. The deans or their designee of each accredited medical
2 school and osteopathic medical school within this state;

3 2. The persons heading the department of anatomy, or comparable
4 department, in the medical and osteopathic medical schools or their
5 designee;

6 3. Two persons appointed jointly by the presidents of
7 institutions of higher education within the state which have
8 educational programs other than medical which require on a regular
9 basis human anatomical materials, provided that these programs have
10 been approved by the Oklahoma State Regents for Higher Education;
11 and

12 4. One at-large member appointed by the Governor to represent
13 the interests of the citizens of this state.

14 B. It shall be the duty of the State Anatomical Board to
15 register all anatomical donor programs and non-transplant tissue
16 banks and to designate agents to provide for the collection,
17 preservation, storage, distribution, delivery, recovery from users,
18 cremation and final disposition of all dead human bodies used for
19 health science education and research in this state.

20 C. The Board shall elect from its membership a chair who shall
21 perform such other duties as the Board may prescribe by rule. The
22 Board shall have full power to establish rules for its government,
23 to appoint and remove officers, and to appoint an executive director
24 who shall keep full and complete minutes of its transactions and

1 manage the affairs of the Board. The expenditures authorized in
2 this section shall not be a charge against the state, but shall be
3 paid by the agent designated by the Board to receive, store, issue,
4 and cremate human anatomical materials. Records shall also be kept
5 by the agent of all bodies received and distributed for the period
6 of time authorized by the Records Disposition Schedule. The name of
7 the oversight board shall be the State Anatomical Board, hereinafter
8 called the Anatomical Board. The Anatomical Board may, in its
9 discretion, exempt any county, district, or institution from the
10 provisions of Sections 91 through 100 of this title in any calendar
11 year for any length of time.

12 SECTION 30. AMENDATORY 67 O.S. 2021, Section 305, as
13 last amended by Section 1, Chapter 217, O.S.L. 2025 (67 O.S. Supp.
14 2025, Section 305), is amended to read as follows:

15 Section 305. There is hereby re-created ~~until July 1, 2028, in~~
16 ~~accordance with the Oklahoma Sunset Law,~~ the Archives and Records
17 Commission, hereinafter referred to as the Commission, to be
18 composed of one member to be appointed by the Governor who shall
19 serve as Chairman, the State Librarian as Vice Chairman and
20 Secretary, the Lieutenant Governor, the State Auditor and Inspector
21 and the State Treasurer as members. Any member may appoint and
22 designate a subofficer or employee as his or her proxy for purposes
23 of carrying on the duties of the Commission. The Commission shall
24 have sole, entire and exclusive authority of the disposition for all

1 public records and archives of state officers, departments, boards,
2 commissions, agencies and institutions of this state. The authority
3 herein granted shall not apply to records and archives of political
4 subdivisions of the state; provided, however, Section 305 et seq. of
5 this title shall not apply to the confidential records and files of
6 the Oklahoma Tax Commission which are exempt from all provisions of
7 this act.

8 SECTION 31. AMENDATORY 70 O.S. 2021, Section 3-173, as
9 amended by Section 1, Chapter 306, O.S.L. 2023 (70 O.S. Supp. 2025,
10 Section 3-173), is amended to read as follows:

11 Section 3-173. A. There is hereby re-created ~~to continue until~~
12 ~~July 1, 2026, in accordance with the provisions of the Oklahoma~~
13 ~~Sunset Law,~~ the Oklahoma Advisory Council on Indian Education.

14 B. The Council shall:

15 1. Make recommendations to the State Board of Education and the
16 Superintendent of Public Instruction in educational matters
17 affecting the education of Native American students;

18 2. Promote educational opportunities and improvement of the
19 quality of education provided to Native American students throughout
20 the state;

21 3. Advocate for Native American students in the state; and

22 4. Monitor and evaluate how the public education system of the
23 state impacts Native American students.
24

1 C. The Council shall be composed of eighteen (18) members as
2 follows:

3 1. Five members who shall each represent an Indian tribe in the
4 state, of which at least one shall represent an Indian tribe which
5 has an enrollment of less than ten thousand (10,000) members who
6 reside in the state, appointed by the Speaker of the House of
7 Representatives from a list of nominations submitted by the elected
8 executive leaders of different Indian tribes in the state;

9 2. Four members who shall each represent the tribal education
10 departments of an Indian tribe in the state, appointed by the
11 President Pro Tempore of the Senate from a list of nominations
12 submitted by the elected executive leaders of different Indian
13 tribes in the state;

14 3. One member who shall represent the Oklahoma Council for
15 Indian Education, appointed by the Governor;

16 4. Two members who shall represent two different statewide
17 organizations representing public school teachers, appointed by the
18 President Pro Tempore of the Senate;

19 5. One member who shall represent a statewide organization
20 representing public school superintendents, appointed by the Speaker
21 of the House of Representatives;

22 6. One member who shall represent Oklahoma tribal colleges,
23 appointed by the Chancellor of Higher Education;

1 7. The Director of the Native American Cultural and Educational
2 Authority, or designee;

3 8. The Chancellor of Higher Education, or designee;

4 9. The Director of the Oklahoma Department of Career and
5 Technology Education, or designee; and

6 10. The Superintendent of Public Instruction, or designee.

7 D. Appointments to the Council shall be made by September 1,
8 2023. The first meeting of the Council shall be called by the
9 Superintendent of Public Instruction. At the first meeting, the
10 members of the Council shall elect a chair and vice chair from among
11 the members. Meetings of the Council shall be held at least
12 quarterly at the call of the chair. Members shall serve at the
13 pleasure of their appointing authorities. A majority of the members
14 of the Council shall constitute a quorum to transact business, but
15 no vacancy shall impair the right of the remaining members to
16 exercise all of the powers of the Council. A vacancy on the Council
17 shall be filled by the original appointing authority. A vacancy on
18 the Council in a seat representing an Indian tribe in the state or
19 the tribal education department of an Indian tribe in the state may
20 be filled by the original appointing authority from a list of
21 nominations submitted by the elected executive leaders of Indian
22 tribes in the state. Appointments to fill any vacancy on the
23 Council shall be made within three (3) months following the vacancy.
24 The State Department of Education, Oklahoma Department of Career and

1 Technology Education, and the Oklahoma State Regents for Higher
2 Education shall provide staff, support, and information as requested
3 by the Council.

4 E. Members of the Council shall receive no compensation for
5 serving on the Council but shall receive travel reimbursement as
6 follows:

7 1. State employees who are members of the Council shall be
8 reimbursed for travel expenses incurred in the performance of their
9 duties by their respective agencies in accordance with the State
10 Travel Reimbursement Act; and

11 2. All other members of the Council shall be reimbursed by the
12 Office of Management and Enterprise Services for travel expenses
13 incurred in the performance of their duties in accordance with the
14 State Travel Reimbursement Act.

15 F. The Council shall act in accordance with the provisions of
16 the Oklahoma Open Meeting Act and the Oklahoma Open Records Act.

17 G. Members who serve on the Council shall be exempt from the
18 dual-office-holding prohibitions of Section 6 of Title 51 of the
19 Oklahoma Statutes.

20 H. The Council shall have the following duties:

21 1. Identify strategies for developing an efficient and reliable
22 process of communications between Oklahoma education entities,
23 educators, tribal organizations, and other interested parties;

2. Identify and disseminate research-based, measurable criteria, both behavioral and academic, by which the success and efficacy of the education offered to Native American students in Oklahoma may be measured;

3. Analyze data to ensure that education agencies in Oklahoma continue to address the education needs of Native American students;

4. Encourage and promote Native American educational leadership at all levels of the education system; and

5. Make recommendations to the State Board of Education for programs that will help achieve the purposes of the Oklahoma Advisory Council on Indian Education Act.

I. The Council shall evaluate and make an annual report on the effectiveness of the public education system in Oklahoma in meeting the needs of Native American students in Oklahoma. The report shall be submitted to the State Board of Education. The report shall also contain a summary of the findings made by the Council pursuant to subsection H of this section, a summary of all data collected by the Council, a summary of the means by which all data was collected by the Council, and any other information deemed necessary by the Council.

SECTION 32. AMENDATORY 70 O.S. 2021, Section 23-105, as amended by Section 1, Chapter 296, O.S.L. 2023 (70 O.S. Supp. 2025, Section 23-105), is amended to read as follows:

1 Section 23-105. There is hereby re-created, ~~to continue until~~
2 ~~July 1, 2026,~~ in accordance with the provisions of ~~the Oklahoma~~
3 ~~Sunset Law,~~ Section 3901 et seq. of Title 74 of the Oklahoma
4 Statutes, a body corporate and politic to be known as the "Oklahoma
5 Educational Television Authority", and by that name the Authority
6 may sue and be sued, and plead and be impleaded. The Authority is
7 hereby constituted an instrumentality of the state, and the exercise
8 by the Authority of the powers conferred by this article for the
9 planning, construction, operation, and maintenance of educational
10 television facilities shall be deemed and held to be an essential
11 function of the state.

12 The Oklahoma Educational Television Authority shall consist of
13 thirteen (13) members, including the President of the University of
14 Oklahoma, the President of Oklahoma State University, the State
15 Superintendent of Public Instruction, the Chancellor of the Oklahoma
16 State Regents for Higher Education, the president of one of the
17 state-supported four-year colleges to be chosen by the presidents of
18 this group of institutions, the president of one of the state-
19 supported two-year colleges to be chosen by the presidents of this
20 group of institutions, and seven additional members to be appointed
21 by the Governor with the advice and consent of the Senate, to serve
22 seven-year terms.

23 The appointed members shall have been residents of the state for
24 at least five (5) years preceding the date of their appointment.

1 The appointed members shall include one member from each of the
2 congressional districts and any remaining members shall be appointed
3 from the state at large. However, when congressional districts are
4 redrawn each member appointed prior to July 1 of the year in which
5 such modification becomes effective shall complete the current term
6 of office and appointments made after July 1 of the year in which
7 such modification becomes effective shall be based on the redrawn
8 districts. Appointments made after July 1 of the year in which such
9 modification becomes effective shall be from any redrawn districts
10 which are not represented by an authority member until such time as
11 each of the modified congressional districts are represented by an
12 authority member. A majority of the appointed members shall be
13 actively engaged in the profession of education. Each appointed
14 member of the Authority, before entering upon the duties of the
15 member, shall take the oath provided for by Section 1 of Article XV
16 of the Constitution of the State of Oklahoma.

17 The seven original members appointed by the Governor shall
18 continue in office for terms expiring on June 30, 1954; June 30,
19 1955; June 30, 1956; June 30, 1957; June 30, 1958; June 30, 1959;
20 and June 30, 1960, respectively. The terms of each of the original
21 appointed members shall be designated by the Governor, and said
22 members shall serve for their appointed terms and until their
23 respective successors shall be appointed and qualified. The
24 successor of each appointed member shall be appointed for a term of

1 seven (7) years, except that any person appointed to fill a vacancy
2 shall be appointed to serve only for the unexpired term in said
3 vacancy.

4 The Authority shall elect from the membership of the Authority a
5 chair, a vice-chair, and a secretary-treasurer. Any such officers
6 elected by the Authority on or after July 1, 1984, shall be
7 appointed to serve a term of one (1) year. Seven members of the
8 Authority shall constitute a quorum, and the vote of seven members
9 shall be necessary for any action taken by the Authority. No
10 vacancy in the membership of the Authority shall impair the right of
11 a quorum to exercise all the rights and perform all the duties of
12 the Authority. The Authority shall meet at least quarterly.

13 The members of the Authority shall not be entitled to
14 compensation for their services, but each member shall be reimbursed
15 for travel expenses incurred in performing official duties in
16 accordance with the provisions of the State Travel Reimbursement
17 Act. No liability or obligation shall be incurred by the Authority
18 beyond the extent to which monies shall have been provided pursuant
19 to the authority of this article.

20 SECTION 33. AMENDATORY 73 O.S. 2021, Section 83.1, as
21 last amended by Section 1, Chapter 16, O.S.L. 2025 (73 O.S. Supp.
22 2025, Section 83.1), is amended to read as follows:

23 Section 83.1. A. There is hereby re-created ~~to continue until~~
24 ~~July 1, 2030, in accordance with the Oklahoma Sunset Law,~~ a Capitol-

1 Medical Center Improvement and Zoning Commission to exercise the
2 functions and perform the duties hereinafter prescribed.

3 B. The Commission shall be composed of eleven (11) members as
4 follows:

5 1. The Director of the Office of Management and Enterprise
6 Services or his or her designee, who shall be ex officio chair of
7 the Capitol-Medical Center Improvement and Zoning Commission;

8 2. The Director of the Transportation Commission or his or her
9 designee;

10 3. The President of the University of Oklahoma or his or her
11 designee;

12 4. Two members appointed by the President Pro Tempore of the
13 Senate;

14 5. Two members appointed by the Speaker of the House of
15 Representatives;

16 6. The Chair of the Planning Commission of Oklahoma City or his
17 or her designee;

18 7. The Chair of the Long-Range Capital Planning Commission or
19 his or her designee; and

20 8. Two members of the Commission appointed by the Governor,
21 with the advice and consent of the State Senate, for four-year
22 staggered terms with one term expiring on January 31 of each even-
23 numbered year.

1 C. The Commission is authorized to appoint and hire a Director,
2 who shall serve as the chief administrative officer of the
3 Commission, and other necessary personnel. The Attorney General of
4 the State of Oklahoma shall be the legal advisor to the Commission
5 in the same capacity as he or she is to other boards and
6 commissions.

7 D. At least one of the members appointed by the President Pro
8 Tempore of the Senate and the Speaker of the House of
9 Representatives shall be a resident within the boundaries of the
10 Capitol-Medical Center Improvement and Zoning District as set forth
11 in Section 83 of this title.

12 SECTION 34. AMENDATORY 74 O.S. 2021, Section 245, as
13 amended by Section 1, Chapter 92, O.S.L. 2023 (74 O.S. Supp. 2025,
14 Section 245), is amended to read as follows:

15 Section 245. A. The Climate Office of the State of Oklahoma
16 located at Norman, Oklahoma, shall be under the direction and
17 supervision of the Board of Regents of the University of Oklahoma
18 and shall be known as the Oklahoma Climatological Survey. The
19 Oklahoma Climatological Survey is hereby re-created, ~~to continue~~
20 ~~until July 1, 2026, in accordance with the provisions of the~~
21 ~~Oklahoma Sunset Law.~~

22 B. The director of the Oklahoma Climatological Survey shall be
23 appointed by the Board and shall either serve as the state
24 climatologist or appoint another current employee of the Survey to

1 serve as state climatologist. The salary of the director shall be
2 determined by the Board.

3 C. The Oklahoma Climatological Survey shall have for its object
4 and duties the following:

5 1. To acquire, archive, process and disseminate, in the most
6 cost-effective way possible, all climate and weather information
7 which is or could be of value to policy and decision makers in the
8 state;

9 2. To act as the representative of the state in all
10 climatological and meteorological matters both within and outside
11 the state when requested to do so by the legislative or executive
12 branches of the state government;

13 3. To prepare, publish and disseminate periodic regular climate
14 summaries for those individuals, agencies and organizations whose
15 activities are related to the welfare of the state and are affected
16 by climate and weather;

17 4. To conduct and report on studies of climate and weather
18 phenomena of significant socioeconomic importance to the state;

19 5. To evaluate the significance of natural and man-made,
20 deliberate and inadvertent changes or modifications in important
21 features of the climate and weather affecting the state, and to
22 report this information to those agencies and organizations in the
23 state who are likely to be affected by such changes or
24 modifications; and

1 6. To maintain and operate the Oklahoma Mesonet, a
2 statewide environmental monitoring network which is overseen by the
3 Mesonet Steering Committee, comprised of representatives of the
4 University of Oklahoma and Oklahoma State University according to
5 its Memorandum of Agreement. The director of the Oklahoma
6 Climatological Survey shall be accountable for executing the
7 policies of the Mesonet Steering Committee.

8 D. The director is authorized to certify copies as being
9 authentic reproductions of weather records held in the state.

10 E. The director of the Oklahoma Climatological Survey shall
11 present a report each year to the Board of Regents of the University
12 of Oklahoma showing the progress, condition and all other
13 information which the Board may deem necessary.

14 SECTION 35. AMENDATORY 74 O.S. 2021, Section 7005, as
15 amended by Section 1, Chapter 70, O.S.L. 2023 (74 O.S. Supp. 2025,
16 Section 7005), is amended to read as follows:

17 Section 7005. A. The Oversight Committee for State Employee
18 Charitable Contributions shall be composed of the Director of the
19 Office of Management and Enterprise Services, or designee, and six
20 (6) state employees, of which two shall be appointed by the
21 Governor, two shall be appointed by the President Pro Tempore of the
22 Oklahoma State Senate and two shall be appointed by the Speaker of
23 the Oklahoma House of Representatives. Members shall serve at the
24 pleasure of their appointing authorities. The provisions of Section

1 6 of Title 51 of the Oklahoma Statutes shall not apply to
2 appointments to the Committee. The Committee is re-created ~~to~~
3 ~~continue until July 1, 2028, in accordance with the provisions of~~
4 ~~the Oklahoma Sunset Law.~~

5 B. The Committee annually shall elect a chair from its
6 membership. The Director of the Office of Management and Enterprise
7 Services shall serve as chair until the first such election.

8 C. The Oversight Committee for State Employee Charitable
9 Contributions shall have the following duties and responsibilities:

10 1. Arrange for publication of information about the application
11 process;

12 2. Review applications of federations electing to participate
13 in the State Charitable Campaign and certify that a federation and
14 each of its member agencies meet the eligibility criteria set forth
15 in Sections 7009 and 7010 of this title;

16 3. Notify in writing each of the applying federations of its
17 acceptance or rejection. Provided, if a federation is rejected, the
18 Committee shall provide the reason for rejection of each of the
19 member agencies of the federation;

20 4. Hear appeals of rejected agencies;

21 5. Delegate to the principal combined fundraising organization
22 the primary responsibility for the staffing and the financial
23 obligations necessary to comply with the provisions of this
24 subsection;

1 6. Develop a pledge card to be used throughout the State
2 Charitable Campaign;

3 7. Select a principal combined fundraising organization to
4 assist the Committee in gathering and accumulating the applications;
5 and

6 8. Promulgate rules to implement the provisions of the Oklahoma
7 State Employee Charitable Contribution Act.

8 D. The Office of Management and Enterprise Services shall
9 provide such staff support as is required by the Committee.

10 E. The Oversight Committee for State Employee Charitable
11 Contributions is authorized to appoint such advisory councils and
12 task forces as it deems necessary for counsel, advice, and review
13 concerning the formulation and administration of the rules,
14 application review process, and the implementation of the Oklahoma
15 State Employee Charitable Contribution Act.

16 SECTION 36. AMENDATORY 74 O.S. 2021, Section 3901, is
17 amended to read as follows:

18 Section 3901. ~~This act~~ Sections 3901 through 3921 of this title
19 shall be known as the "Oklahoma Sunset Law."

20 SECTION 37. AMENDATORY 74 O.S. 2021, Section 3902, is
21 amended to read as follows:

22 Section 3902. As used in the Oklahoma Sunset Law:
23
24

1 1. "Statutory entity" means any department, agency, commission,
2 board or other regulatory instrumentality of state government
3 ~~enumerated in the Oklahoma Sunset Law~~; and

4 2. "Termination date" means the date provided for termination
5 of legislative authority for the existence of a particular entity as
6 provided for in this act.

7 SECTION 38. AMENDATORY 74 O.S. 2021, Section 3909, is
8 amended to read as follows:

9 Section 3909. A. Except as otherwise provided by law, any
10 statutory entity ~~listed in Sections 3903 through 3908 of this title~~
11 which is terminated by the Legislature in accordance with the
12 Oklahoma Sunset Law shall have a period of one (1) year after its
13 termination date for the purpose of ceasing its affairs and
14 termination shall not reduce or otherwise limit the powers, duties,
15 or functions of said entity. Upon the expiration of the one-year
16 period, the entity and its personnel positions shall be abolished.

17 B. Except as otherwise provided by law, one (1) year after the
18 termination date of a statutory entity, the State Treasurer shall
19 transfer all funds of that entity to the General Revenue Fund. All
20 debts of that entity shall be paid by the State Treasurer from the
21 funds of that statutory entity. All equipment, files, fixtures,
22 furniture, and supplies of the terminated entity shall be
23 transferred to the Office of Management and Enterprise Services to
24 be stored or disposed of as specified by law. Any other outstanding

1 obligations or functions remaining to be performed after termination
2 of an entity shall be performed by the Office of Management and
3 Enterprise Services until provisions are made for such obligations
4 or functions by the Legislature.

5 SECTION 39. AMENDATORY 74 O.S. 2021, Section 3913, is
6 amended to read as follows:

7 Section 3913. A. All orders, determinations, rules,
8 regulations, permits, certificates, licenses, contracts, rates and
9 privileges which have been issued, made, granted or allowed to
10 become effective by a statutory entity abolished by the Legislature
11 pursuant to this act or by any provision of law affected by this
12 act, shall continue in effect according to their terms until
13 terminated or modified by operation of law.

14 B. Notwithstanding any other provisions of this act any revenue
15 bonds heretofore or hereafter issued or sold by a statutory entity
16 shall remain in full force and effect, and no such statutory entity
17 shall be terminated under the terms of this act until such
18 outstanding revenue bonded indebtedness has been satisfied.

19 C. No suit, action or other judicial proceeding lawfully
20 commenced by or against any officer or agency in his or its official
21 capacity, or in relation to the exercise of his or its official
22 functions, shall abate by reason of the taking effect of any
23 provision of this act, but the court, unless it determines that the
24 survival of such suit, action or other proceedings is not necessary

1 for purposes of settlement of the questions involved, shall allow
2 the same to be maintained, with such substitutions as to parties as
3 are appropriate.

4 D. No administrative action or any judicial proceeding lawfully
5 commenced shall abate solely by reason of the taking effect of any
6 provision of this act. Any such cause of action pending on the date
7 the entity is terminated or that is commenced during the termination
8 period shall be prosecuted or defended in the name of the state by
9 the Attorney General if it would have been his duty to so prosecute
10 or defend had the statutory entity been recreated.

11 SECTION 40. AMENDATORY 74 O.S. 2021, Section 3914, is
12 amended to read as follows:

13 Section 3914. A. The Legislature may, at any time, notify a
14 statutory entity that it is being placed under sunset review.

15 B. When any statutory entities are under review for sunset,
16 said entities shall bear the burden of establishing that a
17 sufficient public need is present which justifies their continued
18 existence. All said entities shall provide the appropriate House
19 and Senate sunset committees with the following information:

20 1. A performance-informed operating budget review and analysis,
21 including a summary of all income and expenditures;

22 2. The identity of all units and subunits under the direct or
23 advisory control of the statutory entity under review;

1 3. All powers, duties and functions currently performed by the
2 statutory entity under review;

3 4. All statutory or other authority under which said powers,
4 duties and functions of the statutory entity are carried out;

5 5. Any powers, duties or functions which, in the opinion of the
6 statutory entity under review, are being performed and duplicated by
7 another statutory entity within the state including the manner in
8 which, and the extent to which, this duplication of efforts is
9 occurring and any recommendations as to eliminating such a
10 situation;

11 6. Any powers, duties or functions which, in the opinion of the
12 statutory entity under review, are inconsistent with current and
13 projected public demands and should be terminated or altered; and

14 7. Any other information which the appropriate House or Senate
15 sunset committee, in its discretion, feels is necessary and proper
16 in carrying out its duties.

17 C. After review of a statutory entity, the Legislature may set
18 a termination date for the entity for one (1) year after the date of
19 the review decision along with required adjustments for continued
20 operation of the entity. If a statutory entity does not implement
21 the required adjustments by the termination date, the statutory
22 entity shall be terminated and shall cease affairs in accordance
23 with Section 3909 of this title.
24

1 SECTION 41. AMENDATORY 74 O.S. 2021, Section 3917, is
2 amended to read as follows:

3 Section 3917. ~~A. Any statutory entity enumerated in the~~
4 ~~Oklahoma Sunset Law shall, if re-created, be placed in this act to~~
5 ~~be terminated or re-created not more than six (6) years thereafter.~~

6 B. The Oklahoma Department of Libraries shall monitor actions
7 of the State Legislature and maintain a list of all agencies,
8 boards, commissions, committees or other entities created or
9 authorized by law, and all entities created by a Governor's
10 Executive Order. The updated list shall be provided to the
11 Governor, the President Pro Tempore of the Oklahoma State Senate,
12 the Speaker of the Oklahoma House of Representatives, and the chairs
13 of the appropriate House or Senate sunset committee within thirty
14 (30) days after sine die adjournment of each legislative session.

15 SECTION 42. REPEALER 2 O.S. 2021, Section 18-34, is
16 hereby repealed.

17 SECTION 43. REPEALER 2 O.S. 2021, Section 18-181, is
18 hereby repealed.

19 SECTION 44. REPEALER 10 O.S. 2021, Section 1430.4, is
20 hereby repealed.

21 SECTION 45. REPEALER 11 O.S. 2021, Section 51-104, is
22 hereby repealed.

23 SECTION 46. REPEALER 47 O.S. 2021, Section 759, is
24 hereby repealed.

1 SECTION 47. REPEALER 52 O.S. 2021, Section 420.22, is
2 hereby repealed.

3 SECTION 48. REPEALER 53 O.S. 2021, Section 231, is
4 hereby repealed.

5 SECTION 49. REPEALER 56 O.S. 2021, Section 162.1b, is
6 hereby repealed.

7 SECTION 50. REPEALER 57 O.S. 2021, Section 521.1, is
8 hereby repealed.

9 SECTION 51. REPEALER 57 O.S. 2021, Section 549.2, is
10 hereby repealed.

11 SECTION 52. REPEALER 59 O.S. 2021, Section 46.4, as last
12 amended by Section 2, Chapter 147, O.S.L. 2024 (59 O.S. Supp. 2025,
13 Section 46.4), is hereby repealed.

14 SECTION 53. REPEALER 59 O.S. 2021, Section 481, as
15 amended by Section 1, Chapter 227, O.S.L. 2024 (59 O.S. Supp. 2025,
16 Section 481), is hereby repealed.

17 SECTION 54. REPEALER 59 O.S. 2021, Section 1000.2, is
18 hereby repealed.

19 SECTION 55. REPEALER 62 O.S. 2021, Section 34.56, is
20 hereby repealed.

21 SECTION 56. REPEALER 63 O.S. 2021, Section 330.52, as
22 amended by Section 4, Chapter 271, O.S.L. 2023 (63 O.S. Supp. 2025,
23 Section 330.52), is hereby repealed.

24

1 SECTION 57. REPEALER 70 O.S. 2021, Section 6-129.1, is
2 hereby repealed.

3 SECTION 58. REPEALER 72 O.S. 2021, Section 241, is
4 hereby repealed.

5 SECTION 59. REPEALER 74 O.S. 2021, Section 18p-2, is
6 hereby repealed.

7 SECTION 60. REPEALER 74 O.S. 2021, Section 5060.40, is
8 hereby repealed.

9 SECTION 61. REPEALER 74 O.S. 2021, Sections 3903, 3904,
10 3905, 3906, 3907, and 3908 are hereby repealed.

11 SECTION 62. It being immediately necessary for the preservation
12 of the public peace, health or safety, an emergency is hereby
13 declared to exist, by reason whereof this act shall take effect and
14 be in full force from and after its passage and approval.

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